



Race Relations Act 1976

1976 CHAPTER 74

An Act to make fresh provision with respect to discrimination on racial grounds and relations between people of different racial groups; and to make in the Sex Discrimination Act 1975 amendments for bringing provisions in that Act relating to its administration and enforcement into conformity with the corresponding provisions in this Act. [22nd November 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

DISCRIMINATION TO WHICH ACT APPLIES

1.—(1) A person discriminates against another in any circumstances relevant for the purposes of any provision of this Act if— Racial discrimination.

- (a) on racial grounds he treats that other less favourably than he treats or would treat other persons ; or
- (b) he applies to that other a requirement or condition which he applies or would apply equally to persons not of the same racial group as that other but—
 - (i) which is such that the proportion of persons of the same racial group as that other who can comply with it is considerably smaller than the proportion of persons not of that racial group who can comply with it ; and

PART I

(ii) which he cannot show to be justifiable irrespective of the colour race, nationality or ethnic or national origins of the person to whom it is applied ; and

(iii) which is to the detriment of that other because he cannot comply with it.

(2) It is hereby declared that, for the purposes of this Act, segregating a person from other persons on racial grounds is treating him less favourably than they are treated.

Discrimination by way of victimisation.

2.—(1) A person (" the discriminator ") discriminates against another person (" the person victimised ") in any circumstances relevant for the purposes of any provision of this Act if he treats the person victimised less favourably than in those circumstances he treats or would treat other persons, and does so by reason that the person victimised has—

- (a) brought proceedings against the discriminator or any other person under this Act ; or
- (b) given evidence or information in connection with proceedings brought by any person against the discriminator or any other person under this Act ; or
- (c) otherwise done anything under or by reference to this Act in relation to the discriminator or any other person ; or
- (d) alleged that the discriminator or any other person has committed an act which (whether or not the allegation so states) would amount to a contravention of this Act,

or by reason that the discriminator knows that the person victimised intends to do any of those things, or suspects that the person victimised has done, or intends to do, any of them.

(2) Subsection (1) does not apply to treatment of a person by reason of any allegation made by him if the allegation was false and not made in good faith.

Meaning of
" racial
grounds "
" racial group "
etc.

3.—(1) In this Act, unless the context otherwise requires—

" racial grounds " means any of the following grounds, namely colour, race, nationality or ethnic or national origins ;

" racial group " means a group of persons defined by reference to colour, race, nationality or ethnic or national origins, and references to a person's racial group refer to any racial group into which he falls.

(2) The fact that a racial group comprises two or more distinct racial groups does not prevent it from constituting a particular racial group for the purposes of this Act.

(3) In this Act—

PART I

- (a) references to discrimination refer to any discrimination falling within section 1 or 2 ; and
- (b) references to racial discrimination refer to any discrimination falling within section 1,

and related expressions shall be construed accordingly.

(4) A comparison of the case of a person of a particular racial group with that of a person not of that group under section 1(1) must be such that the relevant circumstances in the one case are the same, or not materially different, in the other.

PART II

DISCRIMINATION IN THE EMPLOYMENT FIELD

Discrimination by employers

4.—(1) It is unlawful for a person, in relation to employment by him at an establishment in Great Britain, to discriminate against another—

Discrimination against applicants and employees.

- (a) in the arrangements he makes for the purpose of determining who should be offered that employment ; or
- (b) in the terms on which he offers him that employment ; or
- (c) by refusing or deliberately omitting to offer him that employment.

(2) It is unlawful for a person, in the case of a person employed by him at an establishment in Great Britain, to discriminate against that employee—

- (a) in the terms of employment which he affords him ; or
- (b) in the way he affords him access to opportunities for promotion, transfer or training, or to any other benefits, facilities or services, or by refusing or deliberately omitting to afford him access to them ; or
- (c) by dismissing him, or subjecting him to any other detriment.

(3) Except in relation to discrimination falling within section 2, subsections (1) and (2) do not apply to employment for the purposes of a private household.

(4) Subsection (2) does not apply to benefits, facilities or services of any description if the employer is concerned with the provision (for payment or not) of benefits, facilities or services

PART II

of that description to the public, or to a section of the public comprising the employee in question, unless—

- (a) that provision differs in a material respect from the provision of the benefits, facilities or services by the employer to his employees ; or
- (b) the provision of the benefits, facilities or services to the employee in question is regulated by his contract of employment ; or
- (c) the benefits, facilities or services relate to training.

Exceptions
for genuine
occupational
qualifications.

5.—(1) In relation to racial discrimination—

- (a) section 4(1)(a) or (c) does not apply to any employment where being of a particular racial group is a genuine occupational qualification for the job ; and
- (b) section 4(2)(b) does not apply to opportunities for promotion or transfer to, or training for, such employment.

(2) Being of a particular racial group is a genuine occupational qualification for a job only where—

- (a) the job involves participation in a dramatic performance or other entertainment in a capacity for which a person of that racial group is required for reasons of authenticity ; or
- (b) the job involves participation as an artist's or photographic model in the production of a work of art, visual image or sequence of visual images for which a person of that racial group is required for reasons of authenticity ; or
- (c) the job involves working in a place where food or drink is (for payment or not) provided to and consumed by members of the public or a section of the public in a particular setting for which, in that job, a person of that racial group is required for reasons of authenticity ; or
- (d) the holder of the job provides persons of that racial group with personal services promoting their welfare, and those services can most effectively be provided by a person of that racial group.

(3) Subsection (2) applies where some only of the duties of the job fall within paragraph (a), (b) (c) or (d) as well as where all of them do.

(4) Paragraph (a), (b), (c) or (d) of subsection (2) does not apply in relation to the filling of a vacancy at a time when the employer already has employees of the racial group in question—

- (a) who are capable of carrying out the duties falling within that paragraph ; and

(b) whom it would be reasonable to employ on those duties ; PART II
and

(c) whose numbers are sufficient to meet the employer's likely requirements in respect of those duties without undue inconvenience.

6. Nothing in section 4 shall render unlawful any act done by an employer for the benefit of a person not ordinarily resident in Great Britain in or in connection with employing him at an establishment in Great Britain, where the purpose of that employment is to provide him with training in skills which he appears to the employer to intend to exercise wholly outside Great Britain. Exception for employment intended to provide training in skills to be exercised outside Great Britain.

7.—(1) This section applies to any work for a person ("the principal") which is available for doing by individuals ("contract workers") who are employed not by the principal himself but by another person, who supplies them under a contract made with the principal. Discrimination against contract workers.

(2) It is unlawful for the principal, in relation to work to which this section applies, to discriminate against a contract worker—

(a) in the terms on which he allows him to do that work ; or

(b) by not allowing him to do it or continue to do it ; or

(c) in the way he affords him access to any benefits, facilities or services or by refusing or deliberately omitting to afford him access to them ; or

(d) by subjecting him to any other detriment.

(3) The principal does not contravene subsection (2)(b) by doing any act in relation to a person not of a particular racial group at a time when, if the work were to be done by a person taken into the principal's employment, being of that racial group would be a genuine occupational qualification for the job.

(4) Nothing in this section shall render unlawful any act done by the principal for the benefit of a contract worker not ordinarily resident in Great Britain in or in connection with allowing him to do work to which this section applies, where the purpose of his being allowed to do that work is to provide him with training in skills which he appears to the principal to intend to exercise wholly outside Great Britain.

(5) Subsection (2)(c) does not apply to benefits, facilities or services of any description if the principal is concerned with the provision (for payment or not) of benefits, facilities or services of that description to the public, or to a section of the

PART II

public to which the contract worker in question belongs, unless that provision differs in a material respect from the provision of the benefits, facilities or services by the principal to his contract workers.

Meaning of
employment at
establishment
in Great
Britain.

8.—(1) For the purposes of this Part ("the relevant purposes"), employment is to be regarded as being at an establishment in Great Britain unless the employee does his work wholly or mainly outside Great Britain.

(2) In relation to—

(a) employment on board a ship registered at a port of registry in Great Britain ; or

(b) employment on an aircraft or hovercraft registered in the United Kingdom and operated by a person who has his principal place of business, or is ordinarily resident, in Great Britain, other than an aircraft or hovercraft while so operated in pursuance of a contract with a person who has his principal place of business, or is ordinarily resident, outside the United Kingdom,

subsection (1) shall have effect as if the words "or mainly" were omitted.

(3) In the case of employment on board a ship registered at a port of registry in Great Britain (except where the employee does his work wholly outside Great Britain) the ship shall for the relevant purposes be deemed to be the establishment.

(4) Where work is not done at an establishment it shall be treated for the relevant purposes as done at the establishment from which it is done or (where it is not done from any establishment) at the establishment with which it has the closest connection.

(5) In relation to employment concerned with exploration of the sea bed or subsoil or the exploitation of their natural resources, Her Majesty may by Order in Council provide that subsections (1) to (3) shall have effect as if in both subsection (1) and subsection (3) the last reference to Great Britain included any area for the time being designated under section 1(7) of the Continental Shelf Act 1964, except an area or part of an area in which the law of Northern Ireland applies.

(6) An Order in Council under subsection (5) may provide that, in relation to employment to which the Order applies, this Part is to have effect with such modifications as are specified in the Order.

(7) An Order in Council under subsection (5) shall be of no effect unless a draft of the Order has been laid before and approved by resolution of each House of Parliament.

9.—(1) Nothing in section 4 shall render unlawful any act done by an employer in or in connection with employment by him on any ship in the case of a person who applied or was engaged for that employment outside Great Britain. PART II
Exception for
seamen
recruited
abroad.

(2) Nothing in section 7 shall, as regards work to which that section applies, render unlawful any act done by the principal in or in connection with such work on any ship in the case of a contract worker who was engaged outside Great Britain by the person by whom he is supplied.

(3) Subsections (1) and (2) do not apply to employment or work concerned with exploration of the sea bed or subsoil or the exploitation of their natural resources in any area for the time being designated under section 1(7) of the Continental Shelf Act 1964, not being an area or part of an area in which the law of Northern Ireland applies. 1964 c. 29.

(4) For the purposes of subsection (1) a person brought to Great Britain with a view to his entering into an agreement in Great Britain to be employed on any ship shall be treated as having applied for the employment outside Great Britain.

Discrimination by other bodies

10.—(1) It is unlawful for a firm consisting of six or more partners, in relation to a position as partner in the firm, to discriminate against a person— Partnerships.

(a) in the arrangements they make for the purpose of determining who should be offered that position ; or

(b) in the terms on which they offer him that position ; or

(c) by refusing or deliberately omitting to offer him that position ; or

(d) in a case where the person already holds that position—

(i) in the way they afford him access to any benefits, facilities or services, or by refusing or deliberately omitting to afford him access to them ;
or

(ii) by expelling him from that position, or subjecting him to any other detriment.

(2) Subsection (1) shall apply in relation to persons proposing to form themselves into a partnership as it applies in relation to a firm.

(3) Subsection (1)(a) and (c) do not apply to a position as partner where, if it were employment, being of a particular racial group would be a genuine occupational qualification for the job.

PART II

1907 c. 24.

(4) In the case of a limited partnership references in this section to a partner shall be construed as references to a general partner as defined in section 3 of the Limited Partnerships Act 1907.

Trade
unions etc.

11.—(1) This section applies to an organisation of workers, an organisation of employers, or any other organisation whose members carry on a particular profession or trade for the purposes of which the organisation exists.

(2) It is unlawful for an organisation to which this section applies, in the case of a person who is not a member of the organisation, to discriminate against him—

- (a) in the terms on which it is prepared to admit him to membership ; or
- (b) by refusing, or deliberately omitting to accept, his application for membership.

(3) It is unlawful for an organisation to which this section applies, in the case of a person who is a member of the organisation, to discriminate against him—

- (a) in the way it affords him access to any benefits, facilities or services, or by refusing or deliberately omitting to afford him access to them ; or
- (b) by depriving him of membership, or varying the terms on which he is a member ; or
- (c) by subjecting him to any other detriment.

Qualifying
bodies.

12.—(1) It is unlawful for an authority or body which can confer an authorisation or qualification which is needed for, or facilitates, engagement in a particular profession or trade to discriminate against a person—

- (a) in the terms on which it is prepared to confer on him that authorisation or qualification ; or
- (b) by refusing, or deliberately omitting to grant, his application for it ; or
- (c) by withdrawing it from him or varying the terms on which he holds it.

(2) In this section—

- (a) “authorisation or qualification” includes recognition, registration, enrolment, approval and certification ;
- (b) “confer” includes renew or extend.

(3) Subsection (1) does not apply to discrimination which is rendered unlawful by section 17 or 18.

13.—(1) It is unlawful for a person to whom this subsection applies, in the case of an individual seeking or undergoing training which would help to fit him for any employment, to discriminate against him— PART II
Vocational
training
bodies.

- (a) in the terms on which that person affords him access to any training courses or other facilities ; or
- (b) by refusing or deliberately omitting to afford him such access ; or
- (c) by terminating his training.

(2) Subsection (1) applies to—

- (a) industrial training boards established under section 1 of the Industrial Training Act 1964 ;
- (b) the Manpower Services Commission, the Employment Service Agency, and the Training Services Agency ;
- (c) any association which comprises employers and has as its principal object, or one of its principal objects, affording their employees access to training facilities ;
- (d) any other person providing facilities for training for employment, being a person designated for the purposes of this paragraph in an order made by the Secretary of State.

1964 c. 16.

(3) Subsection (1) does not apply to discrimination which is rendered unlawful by section 17 or 18.

14.—(1) It is unlawful for an employment agency to discriminate against a person— Employment
agencies.

- (a) in the terms on which the agency offers to provide any of its services ; or
- (b) by refusing or deliberately omitting to provide any of its services ; or
- (c) in the way it provides any of its services.

(2) It is unlawful for a local education authority or an education authority to do any act in the performance of its functions under section 8 of the Employment and Training Act 1973 which constitutes discrimination. 1973 c. 50.

(3) References in subsection (1) to the services of an employment agency include guidance on careers and any other services related to employment.

(4) This section does not apply if the discrimination only concerns employment which the employer could lawfully refuse to offer the person in question.

(5) An employment agency or local education authority or an education authority shall not be subject to any liability under this section if it proves—

- (a) that it acted in reliance on a statement made to it by the employer to the effect that, by reason of the

PART II

operation of subsection (4), its action would not be unlawful ; and

(b) that it was reasonable for it to rely on the statement.

(6) A person who knowingly or recklessly makes a statement such as is referred to in subsection (5)(a) which in a material respect is false or misleading commits an offence, and shall be liable on summary conviction to a fine not exceeding £400.

Manpower
Services
Commission
etc.

1973 c. 50.

15.—(1) It is unlawful for any of the following bodies to discriminate in the provision of facilities or services under section 2 of the Employment and Training Act 1973—

(a) the Manpower Services Commission ;

(b) the Employment Service Agency ;

(c) the Training Services Agency.

(2) This section does not apply in a case where—

(a) section 13 applies ; or

(b) the body is acting as an employment agency.

Police

Police.

16.—(1) For the purposes of this Part, the holding of the office of constable shall be treated as employment—

(a) by the chief officer of police as respects any act done by him in relation to a constable or that office ;

(b) by the police authority as respects any act done by them in relation to a constable or that office.

(2) There shall be paid out of the police fund—

(a) any compensation, costs or expenses awarded against a chief officer of police in any proceedings brought against him under this Act, and any costs or expenses incurred by him in any such proceedings so far as not recovered by him in the proceedings ; and

(b) any sum required by a chief officer of police for the settlement of any claim made against him under this Act if the settlement is approved by the police authority.

(3) Any proceedings under this Act which, by virtue of subsection (1), would lie against a chief officer of police shall be brought against the chief officer of police for the time being or, in the case of a vacancy in that office, against the person for the time being performing the functions of that office ; and references in subsection (2) to the chief officer of police shall be construed accordingly.

(4) Subsection (1) applies to a police cadet and appointment a police cadet as it applies to a constable and the office of constable.

(5) In this section—

PART II

“chief officer of police”—

(a) in relation to a person appointed, or an appointment falling to be made, under a specified Act, has the same meaning as in the Police Act,

(b) in relation to any other person or appointment, means the officer who has the direction and control of the body of constables or cadets in question;

“the Police Act” means, for England and Wales, the Police 1964 c. 48. Act 1964 or, for Scotland, the Police (Scotland) Act 1967 c. 77. 1967;

“police authority”—

(a) in relation to a person appointed, or an appointment falling to be made, under a specified Act, has the same meaning as in the Police Act,

(b) in relation to any other person or appointment, means the authority by whom the person in question is or on appointment would be paid;

“police cadet” means any person appointed to undergo training with a view to becoming a constable;

“police fund” in relation to a chief officer of police within paragraph (a) of the above definition of that term has the same meaning as in the Police Act, and in any other case means money provided by the police authority;

“specified Act” means the Metropolitan Police Act 1829, 1829 c. 44. the City of London Police Act 1839 or the Police Act. 1839 c. xciv.

PART III

DISCRIMINATION IN OTHER FIELDS

Education

17. It is unlawful, in relation to an educational establishment falling within column 1 of the following table, for a person indicated in relation to the establishment in column 2 (the “responsible body”) to discriminate against a person—

Discrimination by bodies in charge of educational establishments.

(a) in the terms on which it offers to admit him to the establishment as a pupil; or

(b) by refusing or deliberately omitting to accept an application for his admission to the establishment as a pupil; or

(c) where he is a pupil of the establishment—

(i) in the way it affords him access to any benefits, facilities or services, or by refusing or deliberately omitting to afford him access to them; or

(ii) by excluding him from the establishment or subjecting him to any other detriment.

PART III

TABLE

ENGLAND AND WALES

*Establishment**Responsible body*

1. Educational establishment maintained by a local education authority.

Local education authority or managers or governors, according to which of them has the function in question.

2. Independent school not being a special school.

Proprietor.

3. Special school not maintained by a local education authority.

Proprietor.

4. University.

Governing body.

5. Establishment (not falling within paragraphs 1 to 4) providing full-time or part-time education, being an establishment designated under section 24(1) of the Sex Discrimination Act 1975 for the purposes of paragraph 5 of the corresponding table in section 22 of that Act.

Governing body.

1975 c. 65.

SCOTLAND

6. Educational establishment managed by an education authority.

Education authority.

7. Educational establishment in respect of which the managers are for the time being receiving grants under section 75(c) or (d) of the Education (Scotland) Act 1962.

Managers of the educational establishment.

1962 c. 47.

8. University.

Governing body.

9. Independent school.

Proprietor.

10. Any other educational establishment (not falling within paragraphs 6, 7 and 9) providing full or part-time school education or further education.

Managers of the educational establishment.

18.—(1) It is unlawful for a local education authority, in carrying out such of its functions under the Education Acts 1944 to 1975 as do not fall under section 17, to do any act which constitutes racial discrimination. PART III
Other discrimination
by local
education
authorities.

(2) It is unlawful for an education authority, in carrying out such of its functions under the Education (Scotland) Acts 1939 to 1974 as do not fall under section 17, to do any act which constitutes racial discrimination.

19.—(1) Without prejudice to its obligation to comply with any other provision of this Act, a body to which this subsection applies shall be under a general duty to secure that facilities for education provided by it, and any ancillary benefits or services, are provided without racial discrimination. General duty
in public
sector of
education.

(2) The following provisions of the Education Act 1944, 1944 c. 31. namely—

(a) section 68 (power of Secretary of State to require duties under that Act to be exercised reasonably); and

(b) section 99 (powers of Secretary of State where local education authorities etc. are in default),

shall apply to the performance by a body to which subsection (1) applies of the duties imposed by sections 17 and 18, and shall also apply to the performance of the general duty imposed by subsection (1), as they apply to the performance by a local education authority of a duty imposed by that Act.

(3) Section 71 of the Education (Scotland) Act 1962 (power of the Secretary of State to require duties in that Act to be exercised) shall apply to the performance by a body to which subsection (1) applies of the duties imposed by sections 17 and 18, and shall also apply to the performance of the general duty imposed by subsection (1), as the said section 71 applies to the performance by an education authority of a duty imposed by that Act. 1962 c. 47

(4) The sanctions in subsections (2) and (3) shall be the only sanctions for breach of the general duty in subsection (1), but without prejudice to the enforcement of sections 17 and 18 under section 57 or otherwise (where the breach is also a contravention of either of those sections).

(5) The Secretary of State shall have the power to cause a local inquiry to be held under section 68 of the Education (Scotland) Act 1962 into any matter arising from subsection (3).

(6) Subsection (1) applies to—

(a) local education authorities in England and Wales;

(b) education authorities in Scotland;

PART III

(c) any other body which is a responsible body in relation to—

(i) an establishment falling within paragraph 1, 3 or 7 of the table in section 17 ;

1975 c. 65.

(ii) an establishment designated under section 24(1) of the Sex Discrimination Act 1975 as falling within paragraph (a) or (c) of section 24(2) of that Act ;

1944 c. 31.

(iii) an establishment designated under the said section 24(1) as falling within paragraph (b) of the said section 24(2) where the grants in question are payable under section 100 of the Education Act 1944.

Goods, facilities, services and premises

Discrimination in provision of goods, facilities or services.

20.—(1) It is unlawful for any person concerned with the provision (for payment or not) of goods, facilities or services to the public or a section of the public to discriminate against a person who seeks to obtain or use those goods, facilities or services—

(a) by refusing or deliberately omitting to provide him with any of them ; or

(b) by refusing or deliberately omitting to provide him with goods, facilities or services of the like quality, in the like manner and on the like terms as are normal in the first-mentioned person's case in relation to other members of the public or (where the person so seeking belongs to a section of the public) to other members of that section.

(2) The following are examples of the facilities and services mentioned in subsection (1)—

(a) access to and use of any place which members of the public are permitted to enter ;

(b) accommodation in a hotel, boarding house or other similar establishment ;

(c) facilities by way of banking or insurance or for grants, loans, credit or finance ;

(d) facilities for education ;

(e) facilities for entertainment, recreation or refreshment ;

(f) facilities for transport or travel ;

(g) the services of any profession or trade, or any local or other public authority.

21.—(1) It is unlawful for a person, in relation to premises in Great Britain of which he has power to dispose, to discriminate against another—

PART III
Discrimination in disposal or management of premises.

- (a) in the terms on which he offers him those premises ; or
- (b) by refusing his application for those premises ; or
- (c) in his treatment of him in relation to any list of persons in need of premises of that description.

(2) It is unlawful for a person, in relation to premises managed by him, to discriminate against a person occupying the premises—

- (a) in the way he affords him access to any benefits or facilities, or by refusing or deliberately omitting to afford him access to them ; or
- (b) by evicting him, or subjecting him to any other detriment.

(3) Subsection (1) does not apply to a person who owns an estate or interest in the premises and wholly occupies them unless he uses the services of an estate agent for the purposes of the disposal of the premises, or publishes or causes to be published an advertisement in connection with the disposal.

22.—(1) Sections 20(1) and 21 do not apply to the provision by a person of accommodation in any premises, or the disposal of premises by him, if—

Exception from ss. 20(1) and 21: small dwellings.

- (a) that person or a near relative of his ("the relevant occupier") resides, and intends to continue to reside, on the premises ; and
- (b) there is on the premises, in addition to the accommodation occupied by the relevant occupier, accommodation (not being storage accommodation or means of access) shared by the relevant occupier with other persons residing on the premises who are not members of his household ; and
- (c) the premises are small premises.

(2) Premises shall be treated for the purposes of this section as small premises if—

- (a) in the case of premises comprising residential accommodation for one or more households (under separate letting or similar agreements) in addition to the accommodation occupied by the relevant occupier, there is not normally residential accommodation for more than two such households and only the relevant occupier and any member of his household reside in the accommodation occupied by him ;

PART III

- (b) in the case of premises not falling within paragraph (a), there is not normally residential accommodation on the premises for more than six persons in addition to the relevant occupier and any members of his household.

Further
exceptions
from ss.
20(1) and 21.

23.—(1) Sections 20(1) and 21 do not apply—

- (a) to discrimination which is rendered unlawful by any provision of Part II or section 17 or 18 ; or
(b) to discrimination which would be rendered unlawful by any provision of Part II but for any of the following provisions, namely sections 4(3), 5(1)(b), 6, 7(4), 9 and 14(4).

(2) Section 20(1) does not apply to anything done by a person as a participant in arrangements under which he (for reward or not) takes into his home, and treats as if they were members of his family, children, elderly persons, or persons requiring a special degree of care and attention.

Discrimina-
tion: consent
for assignment
or sub-letting.

24.—(1) Where the licence or consent of the landlord or of any other person is required for the disposal to any person of premises in Great Britain comprised in a tenancy, it is unlawful for the landlord or other person to discriminate against a person by withholding the licence or consent for disposal of the premises to him.

(2) Subsection (1) does not apply if—

- (a) the person withholding a licence or consent, or a near relative of his ("the relevant occupier") resides, and intends to continue to reside, on the premises ; and
(b) there is on the premises, in addition to the accommodation occupied by the relevant occupier, accommodation (not being storage accommodation or means of access) shared by the relevant occupier with other persons residing on the premises who are not members of his household ; and
(c) the premises are small premises.

(3) Section 22(2) (meaning of "small premises") shall apply for the purposes of this as well as of that section.

(4) In this section "tenancy" means a tenancy created by a lease or sub-lease, by an agreement for a lease or sub-lease or by a tenancy agreement or in pursuance of any enactment ; and "disposal", in relation to premises comprised in a tenancy, includes assignment or assignation of the tenancy and sub-letting or parting with possession of the premises or any part of the premises.

(5) This section applies to tenancies created before the passing of this Act, as well as to others.

25.—(1) This section applies to any association of persons (however described, whether corporate or unincorporate, and whether or not its activities are carried on for profit) if—

PART III
Discrimination:
associations
not within
s. 11.

- (a) it has twenty-five or more members ; and
- (b) admission to membership is regulated by its constitution and is so conducted that the members do not constitute a section of the public within the meaning of section 20(1) ; and
- (c) it is not an organisation to which section 11 applies.

(2) It is unlawful for an association to which this section applies, in the case of a person who is not a member of the association, to discriminate against him—

- (a) in the terms on which it is prepared to admit him to membership ; or
- (b) by refusing or deliberately omitting to accept his application for membership.

(3) It is unlawful for an association to which this section applies, in the case of a person who is a member or associate of the association, to discriminate against him—

- (a) in the way it affords him access to any benefits, facilities or services, or by refusing or deliberately omitting to afford him access to them ; or
- (b) in the case of a member, by depriving him of membership, or varying the terms on which he is a member ; or
- (c) in the case of an associate, by depriving him of his rights as an associate, or varying those rights ; or
- (d) in either case, by subjecting him to any other detriment.

(4) For the purposes of this section—

- (a) a person is a member of an association if he belongs to it by virtue of his admission to any sort of membership provided for by its constitution (and is not merely a person with certain rights under its constitution by virtue of his membership of some other association), and references to membership of an association shall be construed accordingly ;
- (b) a person is an associate of an association to which this section applies if, not being a member of it, he has under its constitution some or all of the rights enjoyed by members (or would have apart from any provision in its constitution authorising the refusal of those rights in particular cases).

PART III
Exception
from s. 25
for certain
associations.

26.—(1) An association to which section 25 applies is within this subsection if the main object of the association is to enable the benefits of membership (whatever they may be) to be enjoyed by persons of a particular racial group defined otherwise than by reference to colour; and in determining whether that is the main object of an association regard shall be had to the essential character of the association and to all relevant circumstances including, in particular, the extent to which the affairs of the association are so conducted that the persons primarily enjoying the benefits of membership are of the racial group in question.

(2) In the case of an association within subsection (1), nothing in section 25 shall render unlawful any act not involving discrimination on the ground of colour.

Extent

Extent of
Part III.

27.—(1) Sections 17 to 19 do not apply to benefits, facilities or services outside Great Britain except—

- (a) travel in a ship registered at a port of registry in Great Britain; and
- (b) benefits, facilities or services provided on a ship so registered.

(2) Section 20(1)—

- (a) does not apply to goods, facilities or services outside Great Britain except as provided in subsections (3) and (4); and
- (b) does not apply to facilities by way of banking or insurance or for grants, loans, credit or finance, where the facilities are for a purpose to be carried out, or in connection with risks wholly or mainly arising, outside Great Britain.

(3) Section 20(1) applies to the provision of facilities for travel outside Great Britain where the refusal or omission occurs in Great Britain or on a ship, aircraft or hovercraft within subsection (4).

(4) Section 20(1) applies on and in relation to—

- (a) any ship registered at a port of registry in Great Britain; and
- (b) any aircraft or hovercraft registered in the United Kingdom and operated by a person who has his principal place of business, or is ordinarily resident, in Great Britain,

even if the ship, aircraft or hovercraft is outside Great Britain.

(5) This section shall not render unlawful an act done in or over a country outside the United Kingdom, or in or over that country's territorial waters, for the purpose of complying with the laws of that country.

PART IV

OTHER UNLAWFUL ACTS

28.—(1) In this section “discriminatory practice” means the application of a requirement or condition which results in an act of discrimination which is unlawful by virtue of any provision of Part II or III taken with section 1(1)(b), or which would be likely to result in such an act of discrimination if the persons to whom it is applied included persons of any particular racial group as regards which there has been no occasion for applying it. Discriminatory practices.

(2) A person acts in contravention of this section if and so long as—

- (a) he applies a discriminatory practice ; or
- (b) he operates practices or other arrangements which in any circumstances would call for the application by him of a discriminatory practice.

(3) Proceedings in respect of a contravention of this section shall be brought only by the Commission in accordance with sections 58 to 62.

29.—(1) It is unlawful to publish or to cause to be published an advertisement which indicates, or might reasonably be understood as indicating, an intention by a person to do an act of discrimination, whether the doing of that act by him would be lawful or, by virtue of Part II or III, unlawful. Discriminatory advertisements.

(2) Subsection (1) does not apply to an advertisement—

- (a) if the intended act would be lawful by virtue of any of sections 5, 6, 7(3) and (4), 10(3), 26, 34(2)(b), 35 to 39 and 41 ; or
- (b) if the advertisement relates to the services of an employment agency (within the meaning of section 14(1)) and the intended act only concerns employment which the employer could by virtue of section 5, 6 or 7(3) or (4) lawfully refuse to offer to persons against whom the advertisement indicates an intention to discriminate.

(3) Subsection (1) does not apply to an advertisement which indicates that persons of any class defined otherwise than by reference to colour, race or ethnic or national origins are required for employment outside Great Britain.

(4) The publisher of an advertisement made unlawful by subsection (1) shall not be subject to any liability under that subsection in respect of the publication of the advertisement if he proves—

- (a) that the advertisement was published in reliance on a statement made to him by the person who caused it

PART IV

to be published to the effect that, by reason of the operation of subsection (2) or (3), the publication would not be unlawful; and

(b) that it was reasonable for him to rely on the statement.

(5) A person who knowingly or recklessly makes a statement such as is mentioned in subsection (4)(a) which in a material respect is false or misleading commits an offence, and shall be liable on summary conviction to a fine not exceeding £400.

Instructions to discriminate.

30. It is unlawful for a person—

(a) who has authority over another person; or

(b) in accordance with whose wishes that other person is accustomed to act,

to instruct him to do any act which is unlawful by virtue of Part II or III, or procure or attempt to procure the doing by him of any such act.

Pressure to discriminate.

31.—(1) It is unlawful to induce, or attempt to induce, a person to do any act which contravenes Part II or III.

(2) An attempted inducement is not prevented from falling within subsection (1) because it is not made directly to the person in question, if it is made in such a way that he is likely to hear of it.

Liability of employers and principals.

32.—(1) Anything done by a person in the course of his employment shall be treated for the purposes of this Act (except as regards offences thereunder) as done by his employer as well as by him, whether or not it was done with the employer's knowledge or approval.

(2) Anything done by a person as agent for another person with the authority (whether express or implied, and whether precedent or subsequent) of that other person shall be treated for the purposes of this Act (except as regards offences thereunder) as done by that other person as well as by him.

(3) In proceedings brought under this Act against any person in respect of an act alleged to have been done by an employee of his it shall be a defence for that person to prove that he took such steps as were reasonably practicable to prevent the employee from doing that act, or from doing in the course of his employment acts of that description.

Aiding unlawful acts.

33.—(1) A person who knowingly aids another person to do an act made unlawful by this Act shall be treated for the purposes of this Act as himself doing an unlawful act of the like description.

PART IV

(2) For the purposes of subsection (1) an employee or agent for whose act the employer or principal is liable under section 32 (or would be so liable but for section 32(3)) shall be deemed to aid the doing of the act by the employer or principal.

(3) A person does not under this section knowingly aid another to do an unlawful act if—

(a) he acts in reliance on a statement made to him by that other person that, by reason of any provision of this Act, the act which he aids would not be unlawful; and

(b) it is reasonable for him to rely on the statement.

(4) A person who knowingly or recklessly makes a statement such as is mentioned in subsection (3)(a) which in a material respect is false or misleading commits an offence, and shall be liable on summary conviction to a fine not exceeding £400.

PART V

CHARITIES

34.—(1) A provision which is contained in a charitable instrument (whenever that instrument took or takes effect) and which provides for conferring benefits on persons of a class defined by reference to colour shall have effect for all purposes as if it provided for conferring the like benefits—

(a) on persons of the class which results if the restriction by reference to colour is disregarded; or

(b) where the original class is defined by reference to colour only, on persons generally;

but nothing in this subsection shall be taken to alter the effect of any provision as regards any time before the coming into operation of this subsection.

(2) Nothing in Parts II to IV shall—

(a) be construed as affecting a provision to which this subsection applies; or

(b) render unlawful an act which is done in order to give effect to such a provision.

(3) Subsection (2) applies to any provision which is contained in a charitable instrument (whenever that instrument took or takes effect) and which provides for conferring benefits on persons of a class defined otherwise than by reference to colour (including a class resulting from the operation of subsection (1)).

(4) In this section “charitable instrument” means an enactment or other instrument passed or made for charitable purposes, or an enactment or other instrument so far as it relates

PART V

1962 c. 47.

to charitable purposes, and in Scotland includes the governing instrument of an endowment or of an educational endowment as those expressions are defined in section 135(1) of the Education (Scotland) Act 1962.

In the application of this section to England and Wales, "charitable purposes" means purposes which are exclusively charitable according to the law of England and Wales.

PART VI**GENERAL EXCEPTIONS FROM PARTS II TO IV**

Special needs of racial groups in regard to education, training or welfare.

35. Nothing in Parts II to IV shall render unlawful any act done in affording persons of a particular racial group access to facilities or services to meet the special needs of persons of that group in regard to their education, training or welfare, or any ancillary benefits.

Provision of education or training for persons not ordinarily resident in Great Britain.

36. Nothing in Parts II to IV shall render unlawful any act done by a person for the benefit of persons not ordinarily resident in Great Britain in affording them access to facilities for education or training or any ancillary benefits, where it appears to him that the persons in question do not intend to remain in Great Britain after their period of education or training there.

Discriminatory training by certain bodies.

37.—(1) Nothing in Parts II to IV shall render unlawful any act done in relation to particular work by a training body in or in connection with—

- (a) affording only persons of a particular racial group access to facilities for training which would help to fit them for that work ; or
- (b) encouraging only persons of a particular racial group to take advantage of opportunities for doing that work, where it appears to the training body that at any time within the twelve months immediately preceding the doing of the act—
 - (i) there were no persons of that group among those doing that work in Great Britain ; or
 - (ii) the proportion of persons of that group among those doing that work in Great Britain was small in comparison with the proportion of persons of that group among the population of Great Britain.

(2) Where in relation to particular work it appears to a training body that although the condition for the operation of subsection (1) is not met for the whole of Great Britain it is met

PART VI

for an area within Great Britain, nothing in Parts II to IV shall render unlawful any act done by the training body in or in connection with—

- (a) affording persons who are of the racial group in question, and who appear likely to take up that work in that area, access to facilities for training which would help to fit them for that work ; or
 - (b) encouraging persons of that group to take advantage of opportunities in the area for doing that work.
- (3) In this section “ training body ” means—
- (a) a person mentioned in section 13(2)(a) or (b) ; or
 - (b) any other person being a person designated for the purposes of this section in an order made by the Secretary of State.

38.—(1) Nothing in Parts II to IV shall render unlawful any act done by an employer in relation to particular work in his employment at a particular establishment in Great Britain, being an act done in or in connection with—

Other
discriminatory
training etc.

- (a) affording only those of his employees working at that establishment who are of a particular racial group access to facilities for training which would help to fit them for that work ; or
- (b) encouraging only persons of a particular racial group to take advantage of opportunities for doing that work at that establishment,

where any of the conditions in subsection (2) was satisfied at any time within the twelve months immediately preceding the doing of the act.

(2) Those conditions are—

- (a) that there are no persons of the racial group in question among those doing that work at that establishment ; or
- (b) that the proportion of persons of that group among those doing that work at that establishment is small in comparison with the proportion of persons of that group—
 - (i) among all those employed by that employer there ; or
 - (ii) among the population of the area from which that employer normally recruits persons for work in his employment at that establishment.

PART VI

(3) Nothing in section 11 shall render unlawful any act done by an organisation to which that section applies in or in connection with—

- (a) affording only members of the organisation who are of a particular racial group access to facilities for training which would help to fit them for holding a post of any kind in the organisation ; or
- (b) encouraging only members of the organisation who are of a particular racial group to take advantage of opportunities for holding such posts in the organisation, where either of the conditions in subsection (4) was satisfied at any time within the twelve months immediately preceding the doing of the act.

(4) Those conditions are—

- (a) that there are no persons of the racial group in question among persons holding such posts in that organisation ; or
- (b) that the proportion of persons of that group among those holding such posts in that organisation is small in comparison with the proportion of persons of that group among the members of the organisation.

(5) Nothing in Parts II to IV shall render unlawful any act done by an organisation to which section 11 applies in or in connection with encouraging only persons of a particular racial group to become members of the organisation where at any time within the twelve months immediately preceding the doing of the act—

- (a) no persons of that group were members of the organisation ; or
- (b) the proportion of persons of that group among members of the organisation was small in comparison with the proportion of persons of that group among those eligible for membership of the organisation.

(6) Section 8 (meaning of employment at establishment in Great Britain) shall apply for the purposes of this section as if this section were contained in Part II.

Sports and
competitions.

39. Nothing in Parts II to IV shall render unlawful any act whereby a person discriminates against another on the basis of that other's nationality or place of birth or the length of time for which he has been resident in a particular area or place, if the act is done—

- (a) in selecting one or more persons to represent a country, place or area, or any related association, in any sport or game ; or
- (b) in pursuance of the rules of any competition so far as they relate to eligibility to compete in any sport or game.

40.—(1) References in this Act to the affording by any person of access to benefits, facilities or services are not limited to benefits, facilities or services provided by that person himself, but include any means by which it is in that person's power to facilitate access to benefits, facilities or services provided by any other person (the "actual provider").

PART VI

Indirect
access to
benefits etc.

(2) Where by any provision of this Act the affording by any person of access to benefits, facilities or services in a discriminatory way is in certain circumstances prevented from being unlawful, the effect of the provision shall extend also to the liability under this Act of any actual provider.

41.—(1) Nothing in Parts II to IV shall render unlawful any act of discrimination done—

Acts done
under statutory
authority etc.

- (a) in pursuance of any enactment or Order in Council ; or
- (b) in pursuance of any instrument made under any enactment by a Minister of the Crown ; or
- (c) in order to comply with any condition or requirement imposed by a Minister of the Crown (whether before or after the passing of this Act) by virtue of any enactment.

References in this subsection to an enactment, Order in Council or instrument include an enactment, Order in Council or instrument passed or made after the passing of this Act.

(2) Nothing in Parts II to IV shall render unlawful any act whereby a person discriminates against another on the basis of that other's nationality or place of ordinary residence or the length of time for which he has been present or resident in or outside the United Kingdom or an area within the United Kingdom, if that act is done—

- (a) in pursuance of any arrangements made (whether before or after the passing of this Act) by or with the approval of, or for the time being approved by, a Minister of the Crown ; or
- (b) in order to comply with any condition imposed (whether before or after the passing of this Act) by a Minister of the Crown.

42. Nothing in Parts II to IV shall render unlawful an act done for the purpose of safeguarding national security.

Acts
safeguarding
national
security.

PART VII

THE COMMISSION FOR RACIAL EQUALITY

General

Establishment
and duties of
Commission.

43.—(1) There shall be a body of Commissioners named the Commission for Racial Equality consisting of at least eight but not more than fifteen individuals each appointed by the Secretary of State on a full-time or part-time basis, which shall have the following duties—

- (a) to work towards the elimination of discrimination;
- (b) to promote equality of opportunity, and good relations, between persons of different racial groups generally; and
- (c) to keep under review the working of this Act and, when they are so required by the Secretary of State or otherwise think it necessary, draw up and submit to the Secretary of State proposals for amending it.

(2) The Secretary of State shall appoint—

- (a) one of the Commissioners to be chairman of the Commission; and
- (b) either one or more of the Commissioners (as the Secretary of State thinks fit) to be deputy chairman or deputy chairmen of the Commission.

(3) The Secretary of State may by order amend subsection (1) so far as it regulates the number of Commissioners.

(4) Schedule 1 shall have effect with respect to the Commission.

(5) The Race Relations Board and the Community Relations Commission are hereby abolished.

Assistance to
organisations.

44.—(1) The Commission may give financial or other assistance to any organisation appearing to the Commission to be concerned with the promotion of equality of opportunity, and good relations, between persons of different racial groups, but shall not give any such financial assistance out of money provided (through the Secretary of State) by Parliament except with the approval of the Secretary of State given with the consent of the Treasury.

(2) Except in so far as other arrangements for their discharge are made and approved under paragraph 13 of Schedule 1—

- (a) the Commission's functions under subsection (1); and
- (b) other functions of the Commission in relation to matters connected with the giving of such financial or other assistance as is mentioned in that subsection,

shall be discharged under the general direction of the Commission by a committee of the Commission consisting of at least

three but not more than five Commissioners, of whom one shall be the deputy chairman or one of the deputy chairmen of the Commission.

PART VII

45.—(1) The Commission may undertake or assist (financially or otherwise) the undertaking by other persons of any research, and any educational activities, which appear to the Commission necessary or expedient for the purposes of section 43(1). Research and education.

(2) The Commission may make charges for educational or other facilities or services made available by them.

46.—(1) As soon as practicable after the end of each calendar year the Commission shall make to the Secretary of State a report on their activities during the year (an "annual report"). Annual reports.

(2) Each annual report shall include a general survey of developments, during the period to which it relates, in respect of matters falling within the scope of the Commission's functions.

(3) The Secretary of State shall lay a copy of every annual report before each House of Parliament, and shall cause the report to be published.

Codes of practice

47.—(1) The Commission may issue codes of practice containing such practical guidance as the Commission think fit for either or both of the following purposes, namely— Codes of practice.

- (a) the elimination of discrimination in the field of employment;
- (b) the promotion of equality of opportunity in that field between persons of different racial groups.

(2) When the Commission propose to issue a code of practice, they shall prepare and publish a draft of that code, shall consider any representations made to them about the draft and may modify the draft accordingly.

(3) In the course of preparing any draft code of practice for eventual publication under subsection (2) the Commission shall consult with—

- (a) such organisations or associations of organisations representative of employers or of workers; and
- (b) such other organisations, or bodies,

as appear to the Commission to be appropriate.

(4) If the Commission determine to proceed with the draft, they shall transmit the draft to the Secretary of State who shall—

- (a) if he approves of it, lay it before both Houses of Parliament; and

PART VII

(b) if he does not approve of it, publish details of his reasons for withholding approval.

(5) If, within the period of forty days beginning with the day on which a copy of a draft code of practice is laid before each House of Parliament, or, if such copies are laid on different days, with the later of the two days, either House so resolves, no further proceedings shall be taken thereon, but without prejudice to the laying before Parliament of a new draft.

(6) In reckoning the period of forty days referred to in subsection (5), no account shall be taken of any period during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(7) If no such resolution is passed as is referred to in subsection (5), the Commission shall issue the code in the form of the draft and the code shall come into effect on such day as the Secretary of State may by order appoint.

(8) Without prejudice to section 74(3), an order under subsection (7) may contain such transitional provisions or savings as appear to the Secretary of State to be necessary or expedient in connection with the code of practice thereby brought into operation.

(9) The Commission may from time to time revise the whole or any part of a code of practice issued under this section and issue that revised code, and subsections (2) to (8) shall apply (with appropriate modifications) to such a revised code as they apply to the first issue of a code.

(10) A failure on the part of any person to observe any provision of a code of practice shall not of itself render him liable to any proceedings; but in any proceedings under this Act before an industrial tribunal any code of practice issued under this section shall be admissible in evidence, and if any provision of such a code appears to the tribunal to be relevant to any question arising in the proceedings it shall be taken into account in determining that question.

(11) Without prejudice to subsection (1), a code of practice issued under this section may include such practical guidance as the Commission think fit as to what steps it is reasonably practicable for employers to take for the purpose of preventing their employees from doing in the course of their employment acts made unlawful by this Act.

Investigations

Power to
conduct
formal
investigations.

48.—(1) Without prejudice to their general power to do anything requisite for the performance of their duties under section 43(1), the Commission may if they think fit, and shall

if required by the Secretary of State, conduct a formal investigation for any purpose connected with the carrying out of those duties.

PART VII

(2) The Commission may, with the approval of the Secretary of State, appoint, on a full-time or part-time basis, one or more individuals as additional Commissioners for the purposes of a formal investigation.

(3) The Commission may nominate one or more Commissioners, with or without one or more additional Commissioners, to conduct a formal investigation on their behalf, and may delegate any of their functions in relation to the investigation to the persons so nominated.

49.—(1) The Commission shall not embark on a formal investigation unless the requirements of this section have been complied with. Terms of reference.

(2) Terms of reference for the investigation shall be drawn up by the Commission or, if the Commission were required by the Secretary of State to conduct the investigation, by the Secretary of State after consulting the Commission.

(3) It shall be the duty of the Commission to give general notice of the holding of the investigation unless the terms of reference confine it to activities of persons named in them, but in such a case the Commission shall in the prescribed manner give those persons notice of the holding of the investigation.

(4) Where the terms of reference of the investigation confine it to activities of persons named in them and the Commission in the course of it propose to investigate any act made unlawful by this Act which they believe that a person so named may have done, the Commission shall—

- (a) inform that person of their belief and of their proposal to investigate the act in question ; and
- (b) offer him an opportunity of making oral or written representations with regard to it (or both oral and written representations if he thinks fit) ;

and a person so named who avails himself of an opportunity under this subsection of making oral representations may be represented—

- (i) by counsel or a solicitor ; or
- (ii) by some other person of his choice, not being a person to whom the Commission object on the ground that he is unsuitable.

(5) The Commission or, if the Commission were required by the Secretary of State to conduct the investigation, the

PART VII Secretary of State after consulting the Commission may from time to time revise the terms of reference; and subsections (1), (3) and (4) shall apply to the revised investigation and terms of reference as they applied to the original.

Power
to obtain
information.

50.—(1) For the purposes of a formal investigation the Commission, by a notice in the prescribed form served on him in the prescribed manner—

- (a) may require any person to furnish such written information as may be described in the notice, and may specify the time at which, and the manner and form in which, the information is to be furnished;
- (b) may require any person to attend at such time and place as is specified in the notice and give oral information about, and produce all documents in his possession or control relating to, any matter specified in the notice.

(2) Except as provided by section 60, a notice shall be served under subsection (1) only where—

- (a) service of the notice was authorised by an order made by the Secretary of State; or
- (b) the terms of reference of the investigation state that the Commission believe that a person named in them may have done or may be doing acts of all or any of the following descriptions—
 - (i) unlawful discriminatory acts;
 - (ii) contraventions of section 28; and
 - (iii) contraventions of sections 29, 30 or 31,and confine the investigation to those acts.

(3) A notice under subsection (1) shall not require a person—

- (a) to give information, or produce any documents, which he could not be compelled to give in evidence, or produce, in civil proceedings before the High Court or the Court of Session; or
- (b) to attend at any place unless the necessary expenses of his journey to and from that place are paid or tendered to him.

(4) If a person fails to comply with a notice served on him under subsection (1) or the Commission have reasonable cause to believe that he intends not to comply with it, the Commission may apply to a county court or, in Scotland, a sheriff court for an order requiring him to comply with it or with such directions for the like purpose as may be contained in the order.

(5) Section 84 of the County Courts Act 1959 (penalty for neglecting witness summons) shall apply to failure without reasonable excuse to comply with an order of a county court under subsection (4) as it applies in the cases provided in the said section 84; and paragraph 73 of Schedule 1 to the Sheriff Courts (Scotland) Act 1907 (power of sheriff to grant second diligence for compelling the attendance of witnesses or havers) shall apply to an order of a sheriff court under subsection (4) as it applies in proceedings in the sheriff court. PART VII
1959 c. 22.
1907 c. 51.

(6) A person commits an offence if he—

- (a) wilfully alters, suppresses, conceals or destroys a document which he has been required by a notice or order under this section to produce; or
- (b) in complying with such a notice or order, knowingly or recklessly makes any statement which is false in a material particular,

and shall be liable on summary conviction to a fine not exceeding £400.

(7) Proceedings for an offence under subsection (6) may (without prejudice to any jurisdiction exercisable apart from this subsection) be instituted—

- (a) against any person at any place at which he has an office or other place of business;
- (b) against an individual at any place where he resides, or at which he is for the time being.

51.—(1) If in the light of any of their findings in a formal investigation it appears to the Commission necessary or expedient, whether during the course of the investigation or after its conclusion— Recom-
mendations
and reports
on formal
investigations.

- (a) to make to any person, with a view to promoting equality of opportunity between persons of different racial groups who are affected by any of his activities, recommendations for changes in his policies or procedures, or as to any other matters; or
- (b) to make to the Secretary of State any recommendations, whether for changes in the law or otherwise,

the Commission shall make those recommendations accordingly.

(2) The Commission shall prepare a report of their findings in any formal investigation conducted by them.

PART VII

(3) If the formal investigation is one required by the Secretary of State—

(a) the Commission shall deliver the report to the Secretary of State ; and

(b) the Secretary of State shall cause the report to be published,

and, unless required by the Secretary of State, the Commission shall not publish the report.

(4) If the formal investigation is not one required by the Secretary of State, the Commission shall either publish the report, or make it available for inspection in accordance with subsection (5).

(5) Where under subsection (4) a report is to be made available for inspection, any person shall be entitled, on payment of such fee (if any) as may be determined by the Commission—

(a) to inspect the report during ordinary office hours and take copies of all or any part of the report ; or

(b) to obtain from the Commission a copy, certified by the Commission to be correct, of the report.

(6) The Commission may, if they think fit, determine that the right conferred by subsection (5)(a) shall be exercisable in relation to a copy of the report instead of, or in addition to, the original.

(7) The Commission shall give general notice of the place or places where, and the times when, reports may be inspected under subsection (5).

Restriction on
disclosure of
information.

52.—(1) No information given to the Commission by any person ("the informant") in connection with a formal investigation shall be disclosed by the Commission, or by any person who is or has been a Commissioner, additional Commissioner or employee of the Commission, except—

(a) on the order of any court ; or

(b) with the informant's consent ; or

(c) in the form of a summary or other general statement published by the Commission which does not identify the informant or any other person to whom the information relates ; or

(d) in a report of the investigation published by the Commission or made available for inspection under section 51(5) ; or

(e) to the Commissioners, additional Commissioners or employees of the Commission, or, so far as may be necessary for the proper performance of the functions of the Commission, to other persons ; or

(f) for the purpose of any civil proceedings under this Act to which the Commission are a party, or any criminal proceedings. PART VII

(2) Any person who discloses information in contravention of subsection (1) commits an offence and shall be liable on summary conviction to a fine not exceeding £400.

(3) In preparing any report for publication or for inspection the Commission shall exclude, so far as is consistent with their duties and the object of the report, any matter which relates to the private affairs of any individual or the business interests of any person where the publication of that matter might, in the opinion of the Commission, prejudicially affect that individual or person.

PART VIII ENFORCEMENT

General

53.—(1) Except as provided by this Act no proceedings, Restriction of whether civil or criminal, shall lie against any person in respect of an act by reason that the act is unlawful by virtue of a provision of this Act. proceedings for breach of Act.

(2) Subsection (1) does not preclude the making of an order of certiorari, mandamus or prohibition.

(3) In Scotland, subsection (1) does not preclude the exercise of the jurisdiction of the Court of Session to entertain an application for reduction or suspension of any order or determination or otherwise to consider the validity of any order or determination, or to require reasons for any order or determination to be stated.

Enforcement in employment field

54.—(1) A complaint by any person ("the complainant") that another person ("the respondent")— Jurisdiction of industrial tribunals.

(a) has committed an act of discrimination against the complainant which is unlawful by virtue of Part II; or

(b) is by virtue of section 32 or 33 to be treated as having committed such an act of discrimination against the complainant,

may be presented to an industrial tribunal.

(2) Subsection (1) does not apply to a complaint under section 12(1) of an act in respect of which an appeal, or proceedings in the nature of an appeal, may be brought under any enactment, or to a complaint to which section 75(8) applies.

PART VIII
Conciliation
in employment
cases.

55.—(1) Where a complaint has been presented to an industrial tribunal under section 54 and a copy of the complaint has been sent to a conciliation officer, it shall be the duty of the conciliation officer—

- (a) if he is requested to do so both by the complainant and by the respondent ; or
- (b) if, in the absence of requests by the complainant and the respondent, he considers that he could act under this subsection with a reasonable prospect of success,

to endeavour to promote a settlement of the complaint without its being determined by an industrial tribunal.

(2) Where, before a complaint such as is mentioned in subsection (1) has been presented to an industrial tribunal, a request is made to a conciliation officer to make his services available in the matter by a person who, if the complaint were so presented, would be the complainant or respondent, subsection (1) shall apply as if the complaint had been so presented and a copy of it had been sent to the conciliation officer.

(3) In proceeding under subsection (1) or (2), a conciliation officer shall where appropriate have regard to the desirability of encouraging the use of other procedures available for the settlement of grievances.

(4) Anything communicated to a conciliation officer in connection with the performance of his functions under this section shall not be admissible in evidence in any proceedings before an industrial tribunal except with the consent of the person who communicated it to that officer.

Remedies on
complaint
under
s. 54.

56.—(1) Where an industrial tribunal finds that a complaint presented to it under section 54 is well-founded, the tribunal shall make such of the following as it considers just and equitable—

- (a) an order declaring the rights of the complainant and the respondent in relation to the act to which the complaint relates ;
- (b) an order requiring the respondent to pay to the complainant compensation of an amount corresponding to any damages he could have been ordered by a county court or by a sheriff court to pay to the complainant if the complaint had fallen to be dealt with under section 57 ;
- (c) a recommendation that the respondent take within a specified period action appearing to the tribunal to be practicable for the purpose of obviating or reducing the adverse effect on the complainant of any act of discrimination to which the complaint relates.

(2) The amount of compensation awarded to a person under subsection (1)(b) shall not exceed the limit for the time being imposed by paragraph 20 of Schedule 1 to the Trade Union and Labour Relations Act 1974. PART VIII
1974 c. 52.

(3) Where compensation falls to be awarded in respect of any act both under the Sex Discrimination Act 1975 and this Act, the aggregate of the following amounts of compensation awarded by an industrial tribunal, that is to say— 1975 c. 65.

(a) any compensation awarded under the said Act of 1975 ;
and

(b) any compensation awarded under subsection (1)(b),
shall not exceed the limit referred to in subsection (2).

(4) If without reasonable justification the respondent to a complaint fails to comply with a recommendation made by an industrial tribunal under subsection (1)(c), then, if it thinks it just and equitable to do so—

(a) the tribunal may (subject to the limit in subsection (2)) increase the amount of compensation required to be paid to the complainant in respect of the complaint by an order made under subsection (1)(b) ; or

(b) if an order under subsection (1)(b) could have been made but was not, the tribunal may make such an order.

Enforcement of Part III

57.—(1) A claim by any person (" the claimant ") that another person (" the respondent ")— Claims under
Part III.

(a) has committed an act of discrimination against the claimant which is unlawful by virtue of Part III ; or

(b) is by virtue of section 32 or 33 to be treated as having committed such an act of discrimination against the claimant,

may be made the subject of civil proceedings in like manner as any other claim in tort or (in Scotland) in reparation for breach of statutory duty.

(2) Proceedings under subsection (1)—

(a) shall, in England and Wales, be brought only in a designated county court ; and

(b) shall, in Scotland, be brought only in a sheriff court ;

but all such remedies shall be obtainable in such proceedings as, apart from this subsection and section 53(1), would be obtainable in the High Court or the Court of Session, as the case may be.

PART VIII

(3) As respects an unlawful act of discrimination falling within section 1(1)(b), no award of damages shall be made if the respondent proves that the requirement or condition in question was not applied with the intention of treating the claimant unfavourably on racial grounds.

(4) For the avoidance of doubt it is hereby declared that damages in respect of an unlawful act of discrimination may include compensation for injury to feelings whether or not they include compensation under any other head.

(5) Civil proceedings in respect of a claim by any person that he has been discriminated against in contravention of section 17 or 18 by a body to which section 19(1) applies shall not be instituted unless the claimant has given notice of the claim to the Secretary of State and either the Secretary of State has by notice informed the claimant that the Secretary of State does not require further time to consider the matter, or the period of two months has elapsed since the claimant gave notice to the Secretary of State ; but nothing in this subsection applies to a counterclaim.

(6) In Scotland, when any proceedings are brought under this section, in addition to the service on the defender of a copy of the summons or initial writ initiating the action a copy thereof shall be sent as soon as practicable to the Commission in a manner to be prescribed by Act of Sederunt.

Non-discrimination notices

Issue of non-discrimination notice.

58.—(1) This section applies to—

- (a) an unlawful discriminatory act ; and
- (b) an act contravening section 28 ; and
- (c) an act contravening section 29, 30 or 31,

and so applies whether or not proceedings have been brought in respect of the act.

(2) If in the course of a formal investigation the Commission become satisfied that a person is committing, or has committed, any such acts, the Commission may in the prescribed manner serve on him a notice in the prescribed form (" a non-discrimination notice ") requiring him—

- (a) not to commit any such acts ; and
- (b) where compliance with paragraph (a) involves changes in any of his practices or other arrangements—
 - (i) to inform the Commission that he has effected those changes and what those changes are ; and
 - (ii) to take such steps as may be reasonably required by the notice for the purpose of affording that information to other persons concerned.

PART VIII

(3) A non-discrimination notice may also require the person on whom it is served to furnish the Commission with such other information as may be reasonably required by the notice in order to verify that the notice has been complied with.

(4) The notice may specify the time at which, and the manner and form in which, any information is to be furnished to the Commission, but the time at which any information is to be furnished in compliance with the notice shall not be later than five years after the notice has become final.

(5) The Commission shall not serve a non-discrimination notice in respect of any person unless they have first—

- (a) given him notice that they are minded to issue a non-discrimination notice in his case, specifying the grounds on which they contemplate doing so ; and
- (b) offered him an opportunity of making oral or written representations in the matter (or both oral and written representations if he thinks fit) within a period of not less than 28 days specified in the notice ; and
- (c) taken account of any representations so made by him.

(6) Subsection (2) does not apply to any acts in respect of which the Secretary of State could exercise the powers conferred on him by section 19(2) and (3) ; but if the Commission become aware of any such acts they shall give notice of them to the Secretary of State.

(7) Section 50(4) shall apply to requirements under subsection (2)(b), (3) and (4) contained in a non-discrimination notice which has become final as it applies to requirements in a notice served under section 50(1).

59.—(1) Not later than six weeks after a non-discrimination notice is served on any person he may appeal against any requirement of the notice—

Appeal
against non-
discrimination
notice.

- (a) to an industrial tribunal, so far as the requirement relates to acts which are within the jurisdiction of the tribunal ;
- (b) to a designated county court or a sheriff court, so far as the requirement relates to acts which are within the jurisdiction of the court and are not within the jurisdiction of an industrial tribunal.

(2) Where the tribunal or court considers a requirement in respect of which an appeal is brought under subsection (1) to be unreasonable because it is based on an incorrect finding of fact or for any other reason, the tribunal or court shall quash the requirement.

PART VIII

(3) On quashing a requirement under subsection (2) the tribunal or court may direct that the non-discrimination notice shall be treated as if, in place of the requirement quashed, it had contained a requirement in terms specified in the direction.

(4) Subsection (1) does not apply to a requirement treated as included in a non-discrimination notice by virtue of a direction under subsection (3).

Investigation
as to
compliance
with non-
discrimination
notice.

60.—(1) If—

(a) the terms of reference of a formal investigation state that its purpose is to determine whether any requirements of a non-discrimination notice are being or have been carried out, but section 50(2)(b) does not apply ; and

(b) section 49(3) is complied with in relation to the investigation on a date ("the commencement date") not later than the expiration of the period of five years beginning when the non-discrimination notice became final,

the Commission may within the period referred to in subsection (2) serve notices under section 50(1) for the purposes of the investigation without needing to obtain the consent of the Secretary of State.

(2) The said period begins on the commencement date and ends on the later of the following dates—

(a) the date on which the period of five years mentioned in subsection (1)(b) expires ;

(b) the date two years after the commencement date.

Register of
non-
discrimination
notices.

61.—(1) The Commission shall establish and maintain a register ("the register") of non-discrimination notices which have become final.

(2) Any person shall be entitled, on payment of such fee (if any) as may be determined by the Commission—

(a) to inspect the register during ordinary office hours and take copies of any entry ; or

(b) to obtain from the Commission a copy, certified by the Commission to be correct, of any entry in the register.

(3) The Commission may, if they think fit, determine that the right conferred by subsection (2)(a) shall be exercisable in relation to a copy of the register instead of, or in addition to, the original.

(4) The Commission shall give general notice of the place or places where, and the times when, the register or a copy of it may be inspected.

Other enforcement by Commission

PART VIII

62.—(1) If, during the period of five years beginning on the date on which any of the following became final in the case of any person, namely—

Persistent discrimination.

- (a) a non-discrimination notice served on him ; or
- (b) a finding by a tribunal or court under section 54 or 57 ; that he has done an unlawful discriminatory act ; or
- (c) a finding by a court in proceedings under section 19 or 20 of the Race Relations Act 1968 that he has done an act which was unlawful by virtue of any provision of Part I of that Act, 1968 c. 71.

it appears to the Commission that unless restrained he is likely to do one or more acts falling within paragraph (b), or contravening section 28, the Commission may apply to a designated county court for an injunction, or to a sheriff court for an order, restraining him from doing so ; and the court, if satisfied that the application is well-founded, may grant the injunction or order in the terms applied for or in more limited terms.

(2) In proceedings under this section the Commission shall not allege that the person to whom the proceedings relate has done an act falling within subsection (1)(b) or contravening section 28 which is within the jurisdiction of an industrial tribunal unless a finding by an industrial tribunal that he did that act has become final.

63.—(1) Proceedings in respect of a contravention of section 29, 30 or 31 shall be brought only by the Commission in accordance with the following provisions of this section. Enforcement of ss. 29 to 31.

(2) The proceedings shall be—

- (a) an application for a decision whether the alleged contravention occurred ; or
- (b) an application under subsection (4),

or both.

(3) An application under subsection (2)(a) shall be made—

- (a) in a case based on any provision of Part II, to an industrial tribunal ; and
- (b) in any other case, to a designated county court or a sheriff court.

(4) If it appears to the Commission—

- (a) that a person has done an act which by virtue of section 29, 30 or 31 was unlawful ; and
- (b) that unless restrained he is likely to do further acts which by virtue of that section are unlawful,

PART VIII

the Commission may apply to a designated county court for an injunction, or to a sheriff court for an order, restraining him from doing such acts ; and the court, if satisfied that the application is well-founded, may grant the injunction or order in the terms applied for or more limited terms.

(5) In proceedings under subsection (4) the Commission shall not allege that the person to whom the proceedings relate has done an act which is unlawful under this Act and within the jurisdiction of an industrial tribunal unless a finding by an industrial tribunal that he did that act has become final.

Preliminary
action in
employment
cases.

64.—(1) With a view to making an application under section 62(1) or 63(4) in relation to a person the Commission may present to an industrial tribunal a complaint that he has done an act within the jurisdiction of an industrial tribunal, and if the tribunal considers that the complaint is well-founded it shall make a finding to that effect and, if it thinks it just and equitable to do so in the case of an act contravening any provision of Part II may also (as if the complaint had been presented by the person discriminated against) make an order such as is referred to in section 56(1)(a), or a recommendation such as is referred to in section 56(1)(c), or both.

(2) Subsection (1) is without prejudice to the jurisdiction conferred by section 63(2).

(3) In sections 62 and 63 and this section, the acts "within the jurisdiction of an industrial tribunal" are those in respect of which such jurisdiction is conferred by sections 54 and 63.

Help for persons suffering discrimination

Help for
aggrieved
persons in
obtaining
information
etc.

65.—(1) With a view to helping a person ("the person aggrieved") who considers he may have been discriminated against in contravention of this Act to decide whether to institute proceedings and, if he does so, to formulate and present his case in the most effective manner, the Secretary of State shall by order prescribe—

- (a) forms by which the person aggrieved may question the respondent on his reasons for doing any relevant act, or on any other matter which is or may be relevant ; and
- (b) forms by which the respondent may if he so wishes reply to any questions.

(2) Where the person aggrieved questions the respondent (whether in accordance with an order under subsection (1) or not)—

- (a) the question, and any reply by the respondent (whether in accordance with such an order or not) shall, subject to the following provisions of this section, be admissible as evidence in the proceedings ;

PART VIII

- (b) if it appears to the court or tribunal that the respondent deliberately, and without reasonable excuse, omitted to reply within a reasonable period or that his reply is evasive or equivocal, the court or tribunal may draw any inference from that fact that it considers it just and equitable to draw, including an inference that he committed an unlawful act.

(3) The Secretary of State may by order—

- (a) prescribe the period within which questions must be duly served in order to be admissible under subsection (2)(a); and
- (b) prescribe the manner in which a question, and any reply by the respondent, may be duly served.

(4) Rules may enable the court entertaining a claim under section 57 to determine, before the date fixed for the hearing of the claim, whether a question or reply is admissible under this section or not.

(5) This section is without prejudice to any other enactment or rule of law regulating interlocutory and preliminary matters in proceedings before a county court, sheriff court or industrial tribunal, and has effect subject to any enactment or rule of law regulating the admissibility of evidence in such proceedings.

(6) In this section “respondent” includes a prospective respondent and “rules”—

- (a) in relation to county court proceedings, means county court rules;
- (b) in relation to sheriff court proceedings, means sheriff court rules.

66.—(1) Where, in relation to proceedings or prospective proceedings under this Act, an individual who is an actual or prospective complainant or claimant applies to the Commission for assistance under this section, the Commission shall consider the application and may grant it if they think fit to do so—

- (a) on the ground that the case raises a question of principle; or
- (b) on the ground that it is unreasonable, having regard to the complexity of the case, or to the applicant's position in relation to the respondent or another person involved, or to any other matter, to expect the applicant to deal with the case unaided; or
- (c) by reason of any other special consideration.

(2) Assistance by the Commission under this section may include—

- (a) giving advice;

PART VIII

- (b) procuring or attempting to procure the settlement of any matter in dispute ;
- (c) arranging for the giving of advice or assistance by a solicitor or counsel ;
- (d) arranging for representation by any person, including all such assistance as is usually given by a solicitor or counsel in the steps preliminary or incidental to any proceedings, or in arriving at or giving effect to a compromise to avoid or bring to an end any proceedings ;
- (e) any other form of assistance which the Commission may consider appropriate,

but paragraph (d) shall not affect the law and practice regulating the descriptions of persons who may appear in, conduct, defend, and address the court in, any proceedings.

(3) Where under subsection (1) an application for assistance under this section is made in writing, the Commission shall, within the period of two months beginning when the application is received—

- (a) consider the application after making such enquiries as they think fit ; and
- (b) decide whether or not to grant it ; and
- (c) inform the applicant of their decision, stating whether or not assistance under this section is to be provided by the Commission and, if so, what form it will take.

(4) If, in a case where subsection (3) applies, the Commission within the period of two months there mentioned give notice to the applicant that, in relation to his application—

- (a) the period of two months allowed them by that subsection is by virtue of the notice extended to three months ; and
 - (b) the reference to two months in section 68(3) is by virtue of the notice to be read as a reference to three months,
- subsection (3) and section 68(3) shall have effect accordingly.

(5) In so far as expenses are incurred by the Commission in providing the applicant with assistance under this section, the recovery of those expenses (as taxed or assessed in such manner as may be prescribed by rules or regulations) shall constitute a first charge for the benefit of the Commission—

- (a) on any costs or expenses which (whether by virtue of a judgment or order of a court or tribunal or an agreement or otherwise) are payable to the applicant by any other person in respect of the matter in connection with which the assistance is given ; and

- (b) so far as relates to any costs or expenses, on his rights under any compromise or settlement arrived at in connection with that matter to avoid or bring to an end any proceedings. PART VIII

(6) The charge conferred by subsection (5) is subject to any charge under the Legal Aid Act 1974, or any charge or obligation for payment in priority to other debts under the Legal Aid and Advice (Scotland) Acts 1967 and 1972, and is subject to any provision in any of those Acts for payment of any sum into the legal aid fund. 1974 c. 4.

(7) In this section "respondent" includes a prospective respondent and "rules or regulations"—

- (a) in relation to county court proceedings, means county court rules;
- (b) in relation to sheriff court proceedings, means sheriff court rules;
- (c) in relation to industrial tribunal proceedings, means regulations made under paragraph 21 of Schedule 1 to the Trade Union and Labour Relations Act 1974. 1974 c. 52.

Sheriff courts and designated county courts

67.—(1) For the purposes of this Act a "designated" county court is one designated for the time being for those purposes by an order made by the Lord Chancellor. Sheriff courts and designated county courts.

(2) An order under subsection (1) designating any county court for the purposes of this Act shall assign to that court as its district for those purposes any county court district or two or more county court districts.

(3) A designated county court or a sheriff court shall have jurisdiction to entertain proceedings under this Act with respect to an act done on a ship, aircraft or hovercraft outside its district, including such an act done outside Great Britain.

(4) In any proceedings under this Act in a designated county court or a sheriff court the judge or sheriff shall, unless with the consent of the parties he sits without assessors, be assisted by two assessors appointed from a list of persons prepared and maintained by the Secretary of State, being persons appearing to the Secretary of State to have special knowledge and experience of problems connected with relations between persons of different racial groups.

(5) The remuneration of assessors appointed under subsection (4) shall be at such rate as may, with the approval of the Minister for the Civil Service, be determined by the Lord Chancellor (for proceedings in England and Wales) or the Lord President of the Court of Session (for proceedings in Scotland).

PART VIII

(6) Without prejudice to section 74(3), an order for the discontinuance of the jurisdiction of any county court under this Act, whether wholly or within a part of the district assigned to it for the purposes of this Act, may include provision with respect to any proceedings under this Act commenced in that court before the order comes into operation.

Period within which proceedings to be brought

Period within
which
proceedings to
be brought.

68.—(1) An industrial tribunal shall not consider a complaint under section 54 unless it is presented to the tribunal before the end of the period of three months beginning when the act complained of was done.

(2) A county court or a sheriff court shall not consider a claim under section 57 unless proceedings in respect of the claim are instituted before the end of—

(a) the period of six months beginning when the act complained of was done ; or

(b) in a case to which section 57(5) applies, the period of eight months so beginning.

(3) Where, in relation to proceedings or prospective proceedings by way of a claim under section 57, an application for assistance under section 66 is made to the Commission before the end of the period of six or, as the case may be, eight months mentioned in paragraph (a) or (b) of subsection (2), the period allowed by that paragraph for instituting proceedings in respect of the claim shall be extended by two months.

(4) An industrial tribunal, county court or sheriff court shall not consider an application under section 63(2)(a) unless it is made before the end of the period of six months beginning when the act to which it relates was done ; and a county court or sheriff court shall not consider an application under section 63(4) unless it is made before the end of the period of five years so beginning.

(5) An industrial tribunal shall not consider a complaint under section 64(1) unless it is presented to the tribunal before the end of the period of six months beginning when the act complained of was done.

(6) A court or tribunal may nevertheless consider any such complaint, claim or application which is out of time if, in all the circumstances of the case, it considers that it is just and equitable to do so.

(7) For the purposes of this section—

(a) when the inclusion of any term in a contract renders the making of the contract an unlawful act, that act shall

be treated as extending throughout the duration of the contract ; and PART VIII

(b) any act extending over a period shall be treated as done at the end of that period ; and

(c) a deliberate omission shall be treated as done when the person in question decided upon it ;

and in the absence of evidence establishing the contrary a person shall be taken for the purposes of this section to decide upon an omission when he does an act inconsistent with doing the omitted act or, if he has done no such inconsistent act, when the period expires within which he might reasonably have been expected to do the omitted act if it was to be done.

Evidence

69.—(1) Any finding by a court under section 19 or 20 of the Race Relations Act 1968, or by a court or industrial tribunal under this Act, in respect of any act shall, if it has become final, be treated as conclusive in any proceedings under this Act. Evidence. 1968 c. 71.

(2) In any proceedings under this Act a certificate signed by or on behalf of a Minister of the Crown and certifying—

(a) that any arrangements or conditions specified in the certificate were made, approved or imposed by a Minister of the Crown and were in operation at a time or throughout a period so specified ; or

(b) that an act specified in the certificate was done for the purpose of safeguarding national security,

shall be conclusive evidence of the matters certified.

(3) A document purporting to be a certificate such as is mentioned in subsection (2) shall be received in evidence and, unless the contrary is proved, shall be deemed to be such a certificate.

PART IX

INCITEMENT TO RACIAL HATRED

70.—(1) The Public Order Act 1936 shall be amended in accordance with the following provisions of this section. Incitement to racial hatred. 1936 c. 6

(2) After section 5 there shall be inserted the following section:— (1 Edw. 8 & 1 Geo. 6).

“Incitement to racial hatred.

5A.—(1) A person commits an offence if—

(a) he publishes or distributes written matter which is threatening, abusive or insulting ;
or

PART IX

- (b) he uses in any public place or at any public meeting words which are threatening, abusive or insulting,

in a case where, having regard to all the circumstances, hatred is likely to be stirred up against any racial group in Great Britain by the matter or words in question.

(2) Subsection (1) above does not apply to the publication or distribution of written matter consisting of or contained in—

- (a) a fair and accurate report of proceedings publicly heard before any court or tribunal exercising judicial authority, being a report which is published contemporaneously with those proceedings or, if it is not reasonably practicable or would be unlawful to publish a report of them contemporaneously, is published as soon as publication is reasonably practicable and (if previously unlawful) lawful ; or

- (b) a fair and accurate report of proceedings in Parliament.

(3) In any proceedings for an offence under this section alleged to have been committed by the publication or distribution of any written matter, it shall be a defence for the accused to prove that he was not aware of the content of the written matter in question and neither suspected nor had reason to suspect it of being threatening, abusive or insulting.

(4) Subsection (3) above shall not prejudice any defence which it is open to a person charged with an offence under this section to raise apart from that subsection.

(5) A person guilty of an offence under this section shall be liable—

- (a) on summary conviction, to imprisonment for a term not exceeding six months or to a fine not exceeding £400, or both ;
- (b) on conviction on indictment, to imprisonment for a term not exceeding two years or to a fine, or both ;

but no prosecution for such an offence shall be instituted in England and Wales except by or with the consent of the Attorney General.

(6) In this section—

‘publish’ and ‘distribute’ mean publish or distribute to the public at large or to any

section of the public not consisting exclusively of members of an association of which the person publishing or distributing is a member ;

PART IX

'racial group' means a group of persons defined by reference to colour, race, nationality or ethnic or national origins, and in this definition 'nationality' includes citizenship ;

'written matter' includes any writing, sign or visible representation."

(3) In section 7(2), after the words "section 5" there shall be inserted the words "or 5A".

PART X

SUPPLEMENTAL

71. Without prejudice to their obligation to comply with any other provision of this Act, it shall be the duty of every local authority to make appropriate arrangements with a view to securing that their various functions are carried out with due regard to the need—

Local authorities:
general
statutory
duty.

- (a) to eliminate unlawful racial discrimination ; and
- (b) to promote equality of opportunity, and good relations, between persons of different racial groups.

72.—(1) A term of a contract is void where—

Validity and
revision of
contracts.

- (a) its inclusion renders the making of the contract unlawful by virtue of this Act ; or
- (b) it is included in furtherance of an act rendered unlawful by this Act ; or
- (c) it provides for the doing of an act which would be rendered unlawful by this Act.

(2) Subsection (1) does not apply to a term the inclusion of which constitutes, or is in furtherance of, or provides for, unlawful discrimination against a party to the contract, but the term shall be unenforceable against that party.

(3) A term in a contract which purports to exclude or limit any provision of this Act is unenforceable by any person in whose favour the term would operate apart from this subsection.

(4) Subsection (3) does not apply—

- (a) to a contract settling a complaint to which section 54(1) applies where the contract is made with the assistance of a conciliation officer ; or

PART X

(b) to a contract settling a claim to which section 57 applies.

(5) On the application of any person interested in a contract to which subsection (2) applies, a designated county court or a sheriff court may make such order as it thinks just for removing or modifying any term made unenforceable by that subsection; but such an order shall not be made unless all persons affected have been given notice of the application (except where under rules of court notice may be dispensed with) and have been afforded an opportunity to make representations to the court.

(6) An order under subsection (5) may include provision as respects any period before the making of the order.

**Power to
amend certain
provisions
of Act.**

73.—(1) The Secretary of State may by an order the draft of which has been approved by each House of Parliament—

- (a) amend or repeal section 9 (including that section as amended by a previous order under this subsection);
- (b) amend Part II, III or IV so as to render lawful an act which, apart from the amendment, would be unlawful by reason of section 4(1) or (2), 20(1), 21, 24 or 25;
- (c) amend section 10(1) or 25(1)(a) so as to alter the number of partners or members specified in that provision.

(2) The Secretary of State shall not lay before Parliament the draft of an order under subsection (1) unless he has consulted the Commission about the contents of the draft.

**Orders and
regulations.**

74.—(1) Any power of a Minister of the Crown to make orders or regulations under the provisions of this Act (except sections 13(2)(d), 37(3)(b) and 50(2)(a)) shall be exercisable by statutory instrument.

(2) An order made by a Minister of the Crown under the preceding provisions of this Act (except sections 13(2)(d), 37(3)(b), 50(2)(a) and 73(1)), and any regulations made under section 75(5)(a), shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) An order under this Act may make different provision in relation to different cases or classes of case, may exclude certain cases or classes of case, and may contain transitional provisions and savings.

(4) Any power conferred by this Act to make orders include power (exercisable in the like manner and subject to the like conditions) to vary or revoke any order so made.

(5) Any document purporting to be an order made by the Secretary of State under section 13(2)(d), 37(3)(b) or 50(2)(a) and to be signed by him or on his behalf shall be received in evidence, and shall, unless the contrary is proved, be deemed to be made by him.

PART X

75.—(1) This Act applies—

Application to
Crown etc.

- (a) to an act done by or for purposes of a Minister of the Crown or government department ; or
- (b) to an act done on behalf of the Crown by a statutory body, or a person holding a statutory office, as it applies to an act done by a private person.

(2) Parts II and IV apply to—

- (a) service for purposes of a Minister of the Crown or government department, other than service of a person holding a statutory office ; or
 - (b) service on behalf of the Crown for purposes of a person holding a statutory office or purposes of a statutory body ; or
 - (c) service in the armed forces,
- as they apply to employment by a private person, and shall so apply as if references to a contract of employment included references to the terms of service.

(3) Subsections (1) and (2) have effect subject to section 16.

(4) Subsection (2) of section 8 and subsection (4) of section 27 shall have effect in relation to any ship, aircraft or hovercraft belonging to or possessed by Her Majesty in right of the Government of the United Kingdom as it has effect in relation to a ship, aircraft or hovercraft such as is mentioned in paragraph (a) or (b) of the subsection in question ; and section 8(3) shall apply accordingly.

(5) Nothing in this Act shall—

- (a) invalidate any rules (whether made before or after the passing of this Act) restricting employment in the service of the Crown or by any public body prescribed for the purposes of this subsection by regulations made by the Minister for the Civil Service to persons of particular birth, nationality, descent or residence ; or
- (b) render unlawful the publication, display or implementation of any such rules, or the publication of advertisements stating the gist of any such rules.

In this subsection “employment” includes service of any kind, and “public body” means a body of persons, whether corporate or unincorporate, carrying on a service or undertaking of a public nature.

PART X
1947 c. 44.

(6) The provisions of Parts II to IV of the Crown Proceedings Act 1947 shall apply to proceedings against the Crown under this Act as they apply to proceedings in England and Wales which by virtue of section 23 of that Act are treated for the purposes of Part II of that Act as civil proceedings by or against the Crown, except that in their application to proceedings under this Act section 20 of that Act (removal of proceedings from county court to High Court) shall not apply.

(7) The provisions of Part V of the Crown Proceedings Act 1947 shall apply to proceedings against the Crown under this Act as they apply to proceedings in Scotland which by virtue of the said Part are treated as civil proceedings by or against the Crown, except that in their application to proceedings under this Act the proviso to section 44 of that Act (removal of proceedings from the sheriff court to the Court of Session) shall not apply.

(8) This subsection applies to any complaint by a person ("the complainant") that another person—

- (a) has committed an act of discrimination against the complainant which is unlawful by virtue of section 4 ; or
- (b) is by virtue of section 32 or 33 to be treated as having committed such an act of discrimination against the complainant,

if at the time when the act complained of was done the complainant was serving in the armed forces and the discrimination in question relates to his service in those forces.

1957 c. 53.
1955 c. 18.
1955 c. 19.

(9) Section 54(1) shall not apply to a complaint to which subsection (8) applies, but any such complaint may be made, and if made shall be dealt with, in accordance with whichever of the following provisions for the redress of complaints is appropriate, namely section 130 of the Naval Discipline Act 1957, section 180 or 181 of the Army Act 1955 or section 180 or 181 of the Air Force Act 1955.

(10) In this section—

- (a) "the armed forces" means any of the naval, military or air forces of the Crown (including any women's service administered by the Defence Council) ;
- (b) "statutory body" means a body set up by or in pursuance of an enactment, and "statutory office" means an office so set up ; and
- (c) service "for purposes of" a Minister of the Crown or government department does not include service in any office in Schedule 2 (Ministerial offices) to the House of Commons Disqualification Act 1975 as for the time being in force.

1975 c. 24.

76.—(1) This section applies to any appointment by a Minister of the Crown or government department to an office or post where section 4 does not apply in relation to the appointment.

PART X
Government
appointments
outside
s. 4.

(2) In making the appointment, and in making the arrangements for determining who should be offered the office or post, the Minister of the Crown or government department shall not do an act which would be unlawful under section 4 if the Crown were the employer for the purposes of this Act.

77. There shall be defrayed out of money provided by Parliament—

Financial
provisions.

- (a) sums required by the Secretary of State for making payments under paragraph 5 or 16 of Schedule 1 or paragraph 12 of Schedule 2, and for defraying any other expenditure falling to be made by him under or by virtue of this Act ;
- (b) any expenses incurred by the Secretary of State with the consent of the Treasury in undertaking, or financially assisting the undertaking by other persons of, research into any matter connected with relations between persons of different racial groups ;
- (c) payments falling to be made under section 67(5) in respect of the remuneration of assessors ; and
- (d) any increase attributable to the provisions of this Act in the sums payable out of money provided by Parliament under any other Act.

78.—(1) In this Act, unless the context otherwise requires—

General
interpretation
provisions.

“access” shall be construed in accordance with section 40 ;

“act” includes a deliberate omission ;

“advertisement” includes every form of advertisement or notice, whether to the public or not, and whether in a newspaper or other publication, by television or radio, by display of notices, signs, labels, showcards or goods, by distribution of samples, circulars, catalogues, price lists or other material, by exhibition of pictures, models or films, or in any other way, and references to the publishing of advertisements shall be construed accordingly ;

“the Commission” means the Commission for Racial Equality ;

“Commissioner” means a member of the Commission ;

“designated county court” has the meaning given by section 67(1) ;

PART X

"discrimination" and related terms shall be construed in accordance with section 3(3);

"dispose", in relation to premises, includes granting a right to occupy the premises, and any reference to acquiring premises shall be construed accordingly;

"education" includes any form of training or instruction;

"education authority" and "educational establishment" have for Scotland the same meaning as they have respectively in section 145(16) and (17) of the Education (Scotland) Act 1962;

"employment" means employment under a contract of service or of apprenticeship or a contract personally to execute any work or labour, and related expressions shall be construed accordingly;

"employment agency" means a person who, for profit or not, provides services for the purpose of finding employment for workers or supplying employers with workers;

"estate agent" means a person who, by way of profession or trade, provides services for the purpose of finding premises for persons seeking to acquire them or assisting in the disposal of premises;

"final" shall be construed in accordance with subsection (4);

"firm" has the meaning given by section 4 of the Partnership Act 1890;

"formal investigation" means an investigation under section 48;

"further education" has for England and Wales the meaning given by section 41(a) of the Education Act 1944, and for Scotland the meaning given by section 145(21) of the Education (Scotland) Act 1962;

"general notice", in relation to any person, means a notice published by him at a time and in a manner appearing to him suitable for securing that the notice is seen within a reasonable time by persons likely to be affected by it;

"genuine occupational qualification" shall be construed in accordance with section 5;

"Great Britain" includes such of the territorial waters of the United Kingdom as are adjacent to Great Britain;

"independent school" has for England and Wales the meaning given by section 114(1) of the Education Act 1944, and for Scotland the meaning given by section 145(23) of the Education (Scotland) Act 1962;

1962 c. 47.

1890 c. 39.

1944 c. 31.

- "industrial tribunal"** means a tribunal established under section 12 of the Industrial Training Act 1964 ; PART X
1964 c. 16.
- "managers"** has for Scotland the same meaning as in section 145(26) of the Education (Scotland) Act 1962 ; 1962 c. 47.
- "Minister of the Crown"** includes the Treasury and the Defence Council ;
- "nationality"** includes citizenship ;
- "near relative"** shall be construed in accordance with subsection (5) ;
- "non-discrimination notice"** means a notice under section 58 ;
- "notice"** means a notice in writing ;
- "prescribed"** means prescribed by regulations made by the Secretary of State ;
- "profession"** includes any vocation or occupation ;
- "proprietor"**, in relation to a school, has for England and Wales the meaning given by section 114(1) of the Education Act 1944, and for Scotland the meaning given by section 145(37) of the Education (Scotland) Act 1962 ; 1944 c. 31.
- "pupil"** in Scotland includes a student of any age ;
- "racial grounds"** and **"racial group"** have the meaning given by section 3(1) ;
- "school"** has for England and Wales the meaning given by section 114(1) of the Education Act 1944, and for Scotland the meaning given by section 145(42) of the Education (Scotland) Act 1962 ;
- "school education"** has for Scotland the meaning given by section 145(43A) of the Education (Scotland) Act 1962 ;
- "trade"** includes any business ;
- "training"** includes any form of education or instruction ;
- "university"** includes a university college and the college, school or hall of a university ;
- "upper limit of compulsory school age"** for England and Wales means, subject to section 9 of the Education Act 1962, the age that is that limit by virtue of section 35 of the Education Act 1944 and the Order in Council made under that section. 1962 c. 12.

(2) It is hereby declared that in this Act "premises", unless the context otherwise requires, includes land of any description.

(3) Any power conferred by this Act to designate establishments or persons may be exercised either by naming them or by identifying them by reference to a class or other description.

PART X

(4) For the purposes of this Act a non-discrimination notice or a finding by a court or tribunal becomes final when an appeal against the notice or finding is dismissed, withdrawn or abandoned or when the time for appealing expires without an appeal having been brought; and for this purpose an appeal against a non-discrimination notice shall be taken to be dismissed if, notwithstanding that a requirement of the notice is quashed on appeal, a direction is given in respect of it under section 59(3).

(5) For the purposes of this Act a person is a near relative of another if that person is the wife or husband, a parent or child, a grandparent or grandchild, or a brother or sister of the other (whether of full blood or half-blood or by affinity), and "child" includes an illegitimate child and the wife or husband of an illegitimate child.

(6) Except so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

(7) In this Act, except where otherwise indicated—

- (a) a reference to a numbered Part, section or Schedule is a reference to the Part or section of, or the Schedule to, this Act so numbered; and
- (b) a reference in a section to a numbered subsection is a reference to the subsection of that section so numbered; and
- (c) a reference in a section, subsection or Schedule to a numbered paragraph is a reference to the paragraph of that section, subsection or Schedule so numbered; and
- (d) a reference to any provision of an Act (including this Act) includes a Schedule incorporated in the Act by that provision.

Transitional
and com-
mencement
provisions,
amendments
and repeals.

79.—(1) The provisions of Schedule 2 shall have effect for making transitional provision for the purposes of this Act.

(2) This Act shall come into operation on such day as the Secretary of State may by order appoint, and different days may be so appointed for different provisions and for different purposes.

(3) The enactments specified in Schedule 3 shall have effect subject to the amendments specified in that Schedule (being minor amendments or amendments consequential on the preceding provisions of this Act).

1975 c. 65.

(4) The Sex Discrimination Act 1975 shall have effect subject to the amendments specified in Schedule 4, being amendments for bringing provisions in that Act relating to its administra-

tion and enforcement into conformity with the corresponding provisions in this Act. PART X

(5) Subject to the provisions of Schedule 2, the enactments specified in Schedule 5 are hereby repealed to the extent shown in column 3 of that Schedule.

(6) Section 5 of the Public Order Act 1936 shall continue to have effect as substituted by section 7 of the Race Relations Act 1965, notwithstanding the repeal of the said section 7 by this Act. 1936 c. 6
(1 Edw. 8 &
1 Geo. 6).
1965 c. 73.

(7) An order under this section may make such transitional provision as appears to the Secretary of State to be necessary or expedient in connection with the provisions thereby brought into operation, including such adaptations of those provisions, or of any provisions of this Act then in operation, as appear to the Secretary of State necessary or expedient in consequence of the partial operation of this Act.

80.—(1) This Act may be cited as the Race Relations Act 1976. Short title
and extent.

(2) This Act, except so far as it amends or repeals any provision of the House of Commons Disqualification Act 1975 or the Northern Ireland Assembly Disqualification Act 1975, does not extend to Northern Ireland. 1975 c. 24.
1975 c. 25.

SCHEDULES

Section 43.

SCHEDULE 1

THE COMMISSION FOR RACIAL EQUALITY

Incorporation and status

1. On the appointment by the Secretary of State of the first Commissioners, the Commission shall come into existence as a body corporate.

2.—(1) The Commission is not an emanation of the Crown, and shall not act or be treated as the servant or agent of the Crown.

(2) Accordingly—

- (a) neither the Commission nor a Commissioner or member of its staff as such is entitled to any status, immunity, privilege or exemption enjoyed by the Crown ;
- (b) the Commissioners and members of the staff of the Commission as such are not civil servants ; and
- (c) the Commission's property is not property of, or held on behalf of, the Crown.

Tenure of office of Commissioners

3.—(1) A Commissioner shall hold and vacate his office in accordance with the terms of his appointment.

(2) A person shall not be appointed a Commissioner for more than five years.

(3) With the consent of the Commissioner concerned, the Secretary of State may alter the terms of an appointment so as to make a full-time Commissioner into a part-time Commissioner or vice versa, or for any other purpose.

(4) A Commissioner may resign by notice to the Secretary of State.

(5) The Secretary of State may terminate the appointment of a Commissioner if satisfied that—

- (a) without the consent of the Commission, he failed to attend the meetings of the Commission during a continuous period of six months beginning not earlier than nine months before the termination ; or
- (b) he is an undischarged bankrupt, or has made an arrangement with his creditors, or is insolvent within the meaning of paragraph 9(2) of Schedule 3 to the Conveyancing and Feudal Reform (Scotland) Act 1970 ; or
- (c) he is by reason of physical or mental illness, or for any other reason, incapable of carrying out his duties.

(6) Past service as a Commissioner is no bar to re-appointment.

Tenure of office of chairman and deputy chairmen

4.—(1) The chairman and each deputy chairman shall hold and vacate his office in accordance with the terms of his appointment, and may resign by notice to the Secretary of State.

(2) The office of the chairman or a deputy chairman is vacated if he ceases to be a Commissioner.

SCH. 1

(3) Past service as chairman or a deputy chairman is no bar to re-appointment.

Remuneration of Commissioners

5. The Secretary of State may pay, or make such payments towards the provision of, such remuneration, pensions, allowances or gratuities to or in respect of the Commissioners or any of them as, with the consent of the Minister for the Civil Service, he may determine.

6. Where a person ceases to be a Commissioner otherwise than on the expiry of his term of office, and it appears to the Secretary of State that there are special circumstances which make it right for that person to receive compensation, the Secretary of State may, with the consent of the Minister for the Civil Service, direct the Commission to make to that person a payment of such amount as, with the consent of that Minister, the Secretary of State may determine.

Additional Commissioners

7.—(1) Paragraphs 2(2), 3(1) and (6), and 6 shall apply to additional Commissioners appointed under section 48(2) as they apply to Commissioners.

(2) The Commission may pay, or make such payments towards the provision of, such remuneration, pensions, allowances or gratuities to or in respect of an additional Commissioner as the Secretary of State, with the consent of the Minister for the Civil Service, may determine.

(3) With the approval of the Secretary of State and the consent of the additional Commissioner concerned, the Commission may alter the terms of an appointment of an additional Commissioner so as to make a full-time additional Commissioner into a part-time additional Commissioner or vice versa, or for any other purpose.

(4) An additional Commissioner may resign by notice to the Commission.

(5) The Secretary of State, or the Commission acting with the approval of the Secretary of State, may terminate the appointment of an additional Commissioner if satisfied that—

(a) without reasonable excuse he failed to carry out the duties for which he was appointed during a continuous period of three months beginning not earlier than six months before the termination ; or

(b) he is a person such as is mentioned in paragraph 3(5)(b) ; or

(c) he is by reason of physical or mental illness, or for any other reason, incapable of carrying out his duties.

(6) The appointment of an additional Commissioner shall terminate at the conclusion of the investigation for which he was appointed, if not sooner.

SCH. 1

Staff

8. The Commission may, after consultation with the Secretary of State, appoint such officers and servants as they think fit, subject to the approval of the Minister for the Civil Service as to numbers and as to remuneration and other terms and conditions of service.

1972 c. 11.

9.—(1) Employment with the Commission shall be included among the kinds of employment to which a superannuation scheme under section 1 of the Superannuation Act 1972 can apply, and accordingly in Schedule 1 to that Act (in which those kinds of employment are listed) the words “Commission for Racial Equality” shall be inserted after the words “Commission on Industrial Relations.”

(2) Where a person who is employed by the Commission and is by reference to that employment a participant in a scheme under section 1 of the Superannuation Act 1972 becomes a Commissioner or an additional Commissioner, the Minister for the Civil Service may determine that his service as a Commissioner or additional Commissioner shall be treated for the purposes of the scheme as service as an employee of the Commission.

10.—(1) In this paragraph—

“the new Commission” means the Commission for Racial Equality ;

“present Commission employee” means a person who immediately before the repeal date is employed by the Community Relations Commission ;

“private pension scheme” means a scheme for the payment of pensions, allowances or gratuities other than one made under section 1 of the Superannuation Act 1972 ;

“the repeal date” means the date on which the repeal of the Race Relations Act 1968 by this Act takes effect.

(2) If a present Commission employee enters the employment of the new Commission on the repeal date and on so doing elects to be covered for his service in that employment by a private pension scheme in which he was a participant in respect of his service in the employment of the Community Relations Commission, the new Commission may make such payments towards the provision of benefits to or in respect of him under that scheme (or any other private pension scheme replacing it) as may be determined by the new Commission with the consent of the Secretary of State given with the approval of the Minister for the Civil Service ; and it shall be the duty of the new Commission and those Ministers in the exercise of their functions under this sub-paragraph to ensure that his rights under the scheme do not become less advantageous than they were when he entered the employment of the new Commission.

(3) Where a person who is employed by the new Commission and is in respect of that employment a participant in a private pension scheme becomes a Commissioner or an additional Com-

missioner, his service as a Commissioner or additional Commissioner may be treated for the purposes of the scheme as service as an employee of the new Commission. SCH. 1

11. The Employers' Liability (Compulsory Insurance) Act 1969 1969 c. 57. shall not require insurance to be effected by the Commission.

Advisory committees

12. The Commission may, with the approval of the Secretary of State, appoint advisory committees for the purpose of such of their functions as they think fit.

Proceedings and business

13.—(1) Subject to the provisions of this Act—

- (a) the Commission shall discharge their functions in accordance with arrangements made by the Commission and approved by the Secretary of State ; and
- (b) arrangements so made and approved may provide for the discharge under the general direction of the Commission of any of the Commission's functions by a committee of the Commission, or by two or more Commissioners.

(2) Anything done by or in relation to a committee of the Commission or Commissioners in the discharge of the Commission's functions shall have the same effect as if done by or in relation to the Commission.

14. The validity of any proceedings of the Commission shall not be affected by any vacancy among the members of the Commission or by any defect in the appointment of any Commissioner or additional Commissioner.

15. The quorum for meetings of the Commission shall in the first instance be determined by a meeting of the Commission attended by not less than five Commissioners.

Finance

16. The Secretary of State shall pay to the Commission expenses incurred or to be incurred by them under paragraph 6, 7, 8 or 10 of this Schedule or paragraph 7 of Schedule 2, and, with the consent of the Minister for the Civil Service and the Treasury, shall pay to the Commission such sums as the Secretary of State thinks fit for enabling the Commission to meet other expenses.

17.—(1) The accounting year of the Commission shall be the twelve months ending on 31st March.

(2) It shall be the duty of the Commission—

- (a) to keep proper accounts and proper records in relation to the accounts ;
- (b) to prepare in respect of each accounting year a statement of accounts in such form as the Secretary of State may direct with the approval of the Treasury ; and

SCH. 1

(c) to send copies of the statement to the Secretary of State and the Comptroller and Auditor General before the end of the month of November next following the accounting year to which the statement relates.

(3) The Comptroller and Auditor General shall examine, certify and report on each statement received by him in pursuance of this Schedule and shall lay copies of each statement and of his report before each House of Parliament.

Disqualification Acts

1975 c. 24.
1975 c. 52.

18.—(1) In Part II of Schedule 1 to the House of Commons Disqualification Act 1975 and Part II of Schedule 1 to the Northern Ireland Assembly Disqualification Act 1975 (bodies of which all members are disqualified under those Acts), there shall (at the appropriate place in alphabetical order) be inserted the following entry:—

“The Commission for Racial Equality”.

(2) In Part III of Schedule 1 to each of those Acts of 1975 (other disqualifying offices) there shall (at the appropriate place in alphabetical order) be inserted the following entry:—

“Additional Commissioner of the Commission for Racial Equality”.

Section 79.

SCHEDULE 2

TRANSITIONAL PROVISIONS

Interpretation

1. In this Schedule—

1968 c. 71.

“the 1968 Act” means the Race Relations Act 1968;

“the repeal date” means the date on which the repeal of the 1968 Act by this Act takes effect;

“the Board” means the Race Relations Board.

Enforcement

2. The repeal of the 1968 Act shall not—

(a) invalidate any injunction or order granted or made under section 21 or 23 of that Act which is in force immediately before the repeal date; or

(b) remove from any court any jurisdiction which, but for that repeal, it would have in relation to any such injunction or order.

3. Any proceedings under section 19 or 20 of the 1968 Act which are pending immediately before the repeal date may be continued on and after that date by the Commission as if that Act had not been repealed and the Commission were the Board.

4.—(1) Where a complaint such as is mentioned in section 15(1) or 16(1) of the 1968 Act was made but not disposed of before the repeal date, the relevant provisions of the 1968 Act shall, notwithstanding their repeal, continue to apply in relation to the

SCH. 2

complaint and the act complained of, but as if anything falling to be done in that connection by or in relation to the Board or a conciliation committee fell to be done by or in relation to the Commission or, in so far as the Commission may so direct, a committee appointed for that purpose by the Commission.

(2) For the purposes of this paragraph the relevant provisions of the 1968 Act are—

- (a) for a complaint such as is mentioned in section 15(1) of that Act, sections 15, 18 to 24 and 27 to 29 of that Act ; or
- (b) for a complaint such as is mentioned in section 16(1) of that Act, section 16(1) of, Schedule 2 to, and sections 18 to 24 and 27 to 29 of, that Act.

5. Where a complaint such as is mentioned in section 15(1) or 16(1) of the 1968 Act could have been, but was not, made before the repeal date in respect of an act done before that date, the relevant provisions of the 1968 Act (within the meaning of paragraph 4) shall, notwithstanding their repeal, continue to apply in relation to that act and any such complaint made in respect of it, but as if anything falling to be done in that connection by or in relation to the Board or a conciliation committee fell to be done as mentioned in paragraph 4(1).

6.—(1) Where—

- (a) an investigation under subsection (1) of section 17 of the 1968 Act was begun but not completed before the repeal date ; or
- (b) a matter was before that date referred for investigation under that subsection but was at that date still awaiting investigation ; or
- (c) an investigation under that subsection having been completed before that date, some action arising out of the investigation would have fallen to be taken or continued under the 1968 Act on or after that date if that Act had not been repealed,

the relevant provisions of the 1968 Act shall, notwithstanding their repeal, continue to apply in relation to the investigation and its subject-matter, but as if anything falling to be done in that connection by or in relation to the Board or a conciliation committee fell to be done as mentioned in paragraph 4(1).

(2) For the purposes of this paragraph the relevant provisions of the 1968 Act are section 17(1) of, Schedule 3 to, and sections 18 to 24 and 27 to 29 of, that Act.

7. The Commission—

- (a) may pay to members of any committee appointed by the Commission for the purposes of paragraph 4, 5 or 6 travelling or other allowances in accordance with such scales as may be approved by the Secretary of State with the consent of the Treasury, and may defray any other expenses of such a committee to such amount as may be so approved ; and

SCH. 2

- (b) shall pay to any assessors appointed by the Commission under section 18 of the 1968 Act such remuneration and allowances as the Commission may, with the consent of the Treasury and after consultation with the Secretary of State, determine.

8.—(1) An order under section 19 of the 1968 Act appointing a county court to have jurisdiction under, and assigning to it a district for the purposes of, that section, or providing for the discontinuance of any jurisdiction of a county court for those purposes, shall, so far as it is in force immediately before the repeal date, have effect with the necessary modifications as if made under section 67(1) for the purposes of this Act.

In its application on or after the repeal date by virtue of paragraph 3, 4, 5 or 6, section 19 of the 1968 Act shall have effect as if—

(a) subsections (3) to (5) were omitted ; and

(b) any reference to, or to the district assigned to, a county court appointed to have jurisdiction thereunder were a reference to, or to the district of, a designated county court ;

and section 67(6) shall apply in relation to proceedings under that section in its application as aforesaid as if they were proceedings under this Act.

Regulations under s. 27(9) of 1968 Act

9. Any regulations under section 27(9) of the 1968 Act shall, so far as they are in force immediately before the repeal date, have effect as if made under section 75(5).

Property, rights and liabilities of Race Relations Board and Community Relations Commission

10.—(1) On the repeal date all property, rights and liabilities which immediately before that date were property, rights and liabilities of the Board or of the Community Relations Commission shall vest in the Commission for Racial Equality by virtue of this paragraph and without further assurance.

1895 c. 16.

(2) Section 12 of the Finance Act 1895 (which requires Acts to be stamped as conveyances on sale in certain cases) shall not apply to any transfer of property effected by this paragraph.

(3) Any damages recovered by the Commission for Racial Equality on or after the repeal date by virtue of an award made under section 22 of the 1968 Act shall be accounted for by the Commission to the person in respect of whom they were awarded.

Staff

11.—(1) In this and the following paragraph “present employee” means a person who immediately before the repeal date is employed by the Board or the Community Relations Commission.

(2) This sub-paragraph applies to any present employee—

SCH. 2

(a) who is employed by the Commission as from the repeal date ;
or

(b) who was offered employment with the Commission as from that date on terms which, taken as a whole, are not less favourable than those on which he was employed at the time of the offer, but unreasonably refused the offer.

(3) For the purposes of the Redundancy Payments Act 1965 and 1965 c. 62. any scheme under section 1 of the Superannuation Act 1972 a present 1972 c. 11. employee to whom sub-paragraph (2) above applies shall not be treated as having been dismissed by reason of, or retired on, redundancy on his ceasing to be employed by the Board or the Community Relations Commission (as the case may be).

(4) For the purposes of—

(a) the Contracts of Employment Act 1972 ; 1972 c. 53.

(b) the Trade Union and Labour Relations Act 1974 ; 1974 c. 52.

(c) the Employment Protection Act 1975 ; and 1975 c. 71.

(d) any scheme under section 1 of the Superannuation Act 1972,

there shall be deemed to have been no break at the repeal date in the employment of a present employee who as from that date is employed by the Commission.

(5) Any liability to pay a redundancy payment under the Redundancy Payments Act 1965 to an employee of the Community Relations Commission which arises on the repeal date and which, if it had so arisen without that Commission ceasing to exist, would have arisen as a liability of that Commission, shall instead be a liability of the Secretary of State.

12. Where a present employee whose employment immediately before the repeal date is with the Community Relations Commission is not employed by the Commission for Racial Equality as from that date and is not within paragraph 11(2)(b), the Secretary of State may, with the consent of the Minister for the Civil Service, make to him as compensation for his loss of employment (whether or not he is entitled to a redundancy payment in respect thereof) a payment of such amount as, with the consent of that Minister, the Secretary of State may determine.

13. Any dispute arising under paragraph 11 as to whether or not—

(a) the terms of employment offered to a person are, taken as a whole, less favourable than those on which he was employed at the time when an offer of employment with the Commission was made to him ; or

(b) a person's refusal of an offer of employment with the Commission was unreasonable,

shall be referred to and determined by an industrial tribunal.

Section 79.

SCHEDULE 3

MINOR AND CONSEQUENTIAL AMENDMENTS

1975 c. 71.

1.—(1) The Employment Protection Act 1975 shall be amended as follows.

(2) In section 72(3) of that Act (descriptions of dismissal in respect of which there may be a higher additional award of compensation), for paragraph (b) substitute—

“(b) a dismissal which is an act of discrimination (within the meaning of the Race Relations Act 1976) which is unlawful by virtue of that Act ;”.

(3) For section 77 of that Act (compensation for act which is both sex discrimination and unfair dismissal) substitute—

“Com-
pen-
sation
for act
which is
both sex or
racial
discrimina-
tion (or
both) and
unfair dis-
missal.

77.—(1) Where compensation falls to be awarded in respect of any act both under the provisions of this Act relating to unfair dismissal and under one or both of the following Acts, namely the Sex Discrimination Act 1975 and the Race Relations Act 1976, an industrial tribunal shall not award compensation under any one of those two or, as the case may be, three Acts in respect of any loss or other matter which is or has been taken into account under the other or any other of them by the tribunal or another industrial tribunal in awarding compensation on the same or another complaint in respect of that act.

(2) Without prejudice to paragraph 20 of Schedule 1 to the 1974 Act (limit on compensation), whether as substituted by Part III of Schedule 16 to this Act or as applied by section 65 of the Sex Discrimination Act 1975 or section 56 of the Race Relations Act 1976, in a case to which subsection (1) above applies the aggregate of the following amounts of compensation awarded by an industrial tribunal, that is to say—

(a) any compensation awarded under the said Act of 1975 ; and

(b) any compensation awarded under the said Act of 1976 ; and

(c) any compensation awarded under section 72(1) above or, as the case may be, which is calculated in accordance with section 76 above,

shall not exceed the limit for the time being imposed by the said paragraph 20.”.

(4) In section 88(1) of that Act (appeals from industrial tribunals to Employment Appeal Tribunal), after paragraph (f) add—

“(g) the Race Relations Act 1976.”.

SCH. 3

(5) In section 122(2) of that Act (application of employment legislation to House of Commons staff), for the words from the beginning to "Sex Discrimination Act 1975" substitute—

"(2) The provisions of the following enactments, that is to say—

- (a) section 1 of the Equal Pay Act 1970 ; and
- (b) Parts II and IV of the Sex Discrimination Act 1975 ; and
- (c) Parts II and IV of the Race Relations Act 1976."

SCHEDULE 4

Section 79.

AMENDMENTS OF SEX DISCRIMINATION ACT 1975

1. After section 56 insert the cross-heading "*Codes of Practice*" and, below it, insert as section 56A a section in terms identical with those of section 47 of this Act except for the following adaptations, namely—

- (a) in subsection (1), for "persons of different racial groups" substitute "men and women";
- (b) in subsection (8), for "section 74(3)" substitute "section 81(4)".

2.—(1) After section 58(3) (terms of reference of an investigation) insert as subsection (3A) a subsection in terms identical with those of section 49(4) of this Act.

(2) In section 58(4) for "and (3)" substitute "(3) and (3A)".

3. For section 62 (no further sanctions for breach of Act) substitute—

62.—(1) Except as provided by this Act no proceedings, whether civil or criminal, shall lie against any person in respect of an act by reason that the act is unlawful by virtue of a provision of this Act.

(2) Subsection (1) does not preclude the making of an order of certiorari, mandamus or prohibition.

(3) In Scotland, subsection (1) does not preclude the exercise of the jurisdiction of the Court of Session to entertain an application for reduction or suspension of any order or determination, or otherwise to consider the validity of any order or determination, or to require reasons for any order or determination to be stated."

4. In section 65(3)(a), after "may" insert "(subject to the limit in subsection (2))".

5.—(1) In section 66(2) (claims under Part III) after "this subsection" insert "and section 62(1)".

(2) After section 66(5) insert—

"(5A) In Scotland, when any proceedings are brought under this section, in addition to the service on the defender of a

SCH. 4

copy of the summons or initial writ initiating the action a copy thereof shall be sent as soon as practicable to the Commission in a manner to be prescribed by Act of Sederunt."

6. In section 72(4) (enforcement of sections 38 to 40) omit "an" in the last place where it occurs.

7. In section 75(2), after paragraph (d) insert—

"(e) any other form of assistance which the Commission may consider appropriate,".

8. In section 76 (period within which proceedings to be brought)—

(a) in subsection (2), for the words from "the period" onwards substitute—

"(a) the period of six months beginning when the act complained of was done ; or

(b) in a case to which section 66(5) applies, the period of eight months so beginning." ;

(b) for subsection (3) substitute—

"(3) An industrial tribunal, county court or sheriff court shall not consider an application under section 72(2)(a) unless it is made before the end of the period of six months beginning when the act to which it relates was done ; and a county court or sheriff court shall not consider an application under section 72(4) unless it is made before the end of the period of five years so beginning."

9. For paragraph 15 of Schedule 3 (accounts) substitute—

"15.—(1) The accounting year of the Commission shall be the twelve months ending on 31st March.

(2) It shall be the duty of the Commission—

(a) to keep proper accounts and proper records in relation to the accounts ;

(b) to prepare in respect of each accounting year a statement of accounts in such form as the Secretary of State may direct with the approval of the Treasury ; and

(c) to send copies of the statement to the Secretary of State and the Comptroller and Auditor General before the end of the month of November next following the accounting year to which the statement relates.

(3) The Comptroller and Auditor General shall examine, certify and report on each statement received by him in pursuance of this Schedule and shall lay copies of each statement and of his report before each House of Parliament."

SCHEDULE 5

Section 79.

REPEALS

Session and Chapter	Short title	Extent of repeal
1965 c. 73.	Race Relations Act 1965.	The whole Act, so far as unrepealed.
1968 c. 71.	Race Relations Act 1968.	The whole Act.
1972 c. 11.	Superannuation Act 1972.	In Schedule 1, the words " Race Relations Board ".
1973 c. 50.	Employment and Training Act 1973.	In Schedule 3, paragraph 10.
1974 c. 52.	Trade Union and Labour Relations Act 1974.	In Schedule 1, paragraph 28.
1975 c. 24.	House of Commons Disqualification Act 1975.	In Part II of Schedule 1, the words " The Community Relations Commission " and the entry beginning " The Race Relations Board ".
1975 c. 25.	Northern Ireland Assembly Disqualification Act 1975.	In Part II of Schedule 1, the entry beginning " The Race Relations Board ".
1975 c. 65.	Sex Discrimination Act 1975.	In section 72(4) the word " an ", in the last place where it occurs.
1975 c. 71.	Employment Protection Act 1975.	In Part III of Schedule 16, paragraph 28.